



CHAPTER cxxiii.

An Act to empower the mayor aldermen and burgesses of the borough of Wolverhampton to provide and work trolley vehicles and to confer further powers upon them with regard to the provision and working of omnibuses to empower the Corporation to construct street improvements to make further provision with regard to the tramway omnibus and electricity undertakings of the Corporation and the health local government and improvement of the borough to amend the law with regard to the making assessment and collection of rates in the borough and the Wolverhampton Poor Law Union and for other purposes. A.D. 1925.

[7th August 1925.]

WHEREAS the borough of Wolverhampton in the county of Stafford (hereinafter called "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas the Corporation are the owners of and are working an extensive system of tramways within their borough and in the neighbourhood thereof and it is expedient to empower the Corporation to provide and work mechanically propelled vehicles adapted for use upon roads without rails and moved by electrical power transmitted thereto by some external source (in this

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Corporation Act, 1925.

A.D. 1925. Act referred to as “ the trolley vehicles ”) along existing
— tramway routes and along other routes and to make
further provision with regard to the tramway undertaking
of the Corporation :

And whereas powers with regard to the running of omnibuses within and beyond the borough were conferred upon the Corporation by the *Wolverhampton Corporation Act 1920* and it is expedient to enlarge the powers of the Corporation with reference to the running of omnibuses beyond the borough as is provided in this Act :

And whereas by the *Wolverhampton Corporation Act 1899* powers were conferred upon the Corporation with reference to the purchase by agreement of tramways outside the borough which form continuations of authorised tramways at any time existing within the borough or which can be worked in connection therewith and it is expedient to make provision with regard to the substitution of trolley vehicles by the Corporation for tramways purchased by the Corporation outside the borough and to confirm the agreements set forth in the First Schedule to this Act :

And whereas it is expedient to authorise the Corporation to construct the street works referred to in this Act :

And whereas the Corporation are the owners of the undertaking whereby the borough and the adjoining parish of Bushbury are supplied with electricity and it is expedient to make further provision with regard to the electricity undertaking of the Corporation as in this Act provided :

And whereas it is expedient to empower the Corporation to erect concert halls and other buildings and to provide or arrange for the provision of entertainments therein and to confer further powers upon the Corporation with regard to their parks and recreation grounds :

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the borough and that the powers of the Corporation in regard thereto should be enlarged as is provided in this Act :

And whereas the township of *Wolverhampton* forms part of the *Wolverhampton Poor Law Union* (which

includes in addition to the said township the parishes or townships of Bilston Short Heath Willenhall Heath Town and Wednesfield) and it is expedient to make further provision as in this Act provided with regard to the making assessment and collection of rates both in the township of Wolverhampton and also in the whole of the said union : A.D. 1925.
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And whereas it is expedient to provide for the formation of a consolidated loans fund by the Corporation and to make further provision with regard to the finances of the Corporation :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For the construction of the street works	£
authorised by this Act - - -	45,500
For the provision of trolley vehicles -	112,500
For the provision of electrical equipment and the construction of other works necessary for working the trolley vehicles authorised by this Act -	50,000
For the erection of buildings for the purposes of the trolley vehicles of the Corporation - - - - -	3,000
For the reconstruction of the roads upon which the tramways to be removed or discontinued under this Act are situate - - - - -	52,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the street works authorised by this Act and also a book of reference containing the names of the

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A.D. 1925. owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Stafford and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the *Wolverhampton Corporation Act 1925.*

Division of Act into Parts. 2. This Act is divided into Parts as follows :—
 Part I.—Preliminary.
 Part II.—Trolley vehicles and omnibuses.
 Part III.—Street works and lands.
 Part IV.—Electricity.
 Part V.—Public buildings parks and recreation grounds.
 Part VI.—Streets buildings streams &c.
 Part VII.—Infectious disease and sanitary provisions.
 Part VIII.—Police provisions.
 Part IX.—Rating.
 Part X.—Financial and miscellaneous provisions.

Incorporation of Acts. 3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification (namely) :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

- (b) The bond required by section 85 of the Lands A.D. 1925.
Clauses Consolidation Act 1845 shall be under
the corporate seal of the Corporation and shall
be sufficient without the addition of the sureties
mentioned in that section.

4.—(1) In this Act the several words and expressions Interpretation.
to which meanings are assigned by the Acts wholly or
partially incorporated herewith or by the Public Health
Acts have the same respective meanings unless there be
something in the subject or context repugnant to such
construction.

(2) In this Act unless the subject or context otherwise
requires—

“The borough” means the borough of Wolver-
hampton;

“The Corporation” means the mayor aldermen and
burgesses of the borough;

“The council” means the council of the borough;

“The town clerk” “the treasurer” “the surveyor”
“the medical officer” and “the sanitary inspec-
tor” mean respectively the town clerk the
treasurer the surveyor the medical officer of
health and any sanitary inspector of the borough
and respectively include any person duly author-
ised to discharge temporarily the duties of those
offices;

“Trolley vehicle” means a mechanically propelled
vehicle adapted for use upon roads without rails
and moved by electrical power transmitted
thereto from some external source;

“Trolley vehicle routes” means the routes upon
which the Corporation are by this Act authorised
to work and use trolley vehicles;

“Omnibus” means any stage carriage moved by
animal power or by mechanical power (including
in that expression steam electrical and every other
motive power not being animal power) obtained
from some internal source;

“Road authority” means with reference to any road
or part of a road over which any proposed
trolley vehicle service will pass or in which any
police telephone call-box or street fire alarm

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- shall be fixed under the powers of this Act the person charged with or liable to contribute to the maintenance of such road or part of a road;
- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;
- “Child” means a person under the age of sixteen years;
- “Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;
- “Food” has the meaning assigned to it by section 26 of the Sale of Food and Drugs Act 1899;
- “Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction;
- “The borough fund” and “the borough rate” mean respectively the borough fund and borough rate of the borough;
- “The township” means the township of Wolverhampton;
- “The poor rate” means the poor rate for the township and includes the borough rate;
- “The union” means the Wolverhampton Poor Law Union;
- “The assessment committee” means the assessment committee of the union;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department

made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1925
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“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“ The Act of 1869 ” “ the Order of 1888 ” “ the Order of 1890 ” “ the Act of 1899 ” “ the Order of 1902 ” “ the Act of 1904 ” “ the Act of 1908 ” “ the Order of 1911 ” “ the Act of 1915 ” and “ the Act of 1920 ” mean respectively the *Wolverhampton Improvement Act 1869* the *Wolverhampton Order 1888* the *Wolverhampton Electric Lighting Order 1890* the *Wolverhampton Corporation Act 1899* the *Wolverhampton Corporation Tramways Order 1902* the *Wolverhampton Corporation Act 1904* the *Wolverhampton Corporation Act 1908* the *Wolverhampton Order 1911* the *Wolverhampton Corporation Water Act 1915* and the *Wolverhampton Corporation Act 1920*;

“ The Corporation tramways ” and “ statutory security ” have the meanings assigned to them respectively by section 3 (Interpretation) of the Act of 1899;

The word “ omnibus ” in the Act of 1920 shall have the meaning assigned to it by this section and the definition of that word contained in section 4 (Interpretation) of the Act of 1920 is hereby repealed.

PART II.

TROLLEY VEHICLES AND OMNIBUSES.

5.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may use the same upon the trolley vehicle routes hereinafter described. Power to use trolley vehicles.

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(2) The trolley vehicle routes above referred to are as follows—

Route No. 1 (In the borough and in the urban district of Tettenhall) From Victoria Square along Lichfield Street Queen Square Darlington Street Chapel Ash Tettenhall Road and Holyhead Road to the junction of the last-named road with the Wrottesley Road;

Route No. 2 (In the borough and in the urban district of Tettenhall) Along Waterloo Road from its junction with Darlington Street Newhampton Road Leicester Square Coleman Street Hordern Road and Lowlands Avenue;

Route No. 2A (In the borough) Along Waterloo Road from its junction with Newhampton Road to its junction with Molineux Street;

Route No. 2B (In the urban district of Tettenhall) Along Codsall Road Sandy Lane and Aldersley Road;

Route No. 2c (In the borough) From the junction of Newhampton Road with Coleman Street along Newhampton Road to its junction with Tettenhall Road at Newbridge;

Route No. 3 (In the borough and in the parish of Bushbury in the rural district of Cannock) Along North Street Molineux Street Waterloo Road and Stafford Road to the Vine Inn Fordhouses;

Route No. 3A (In the borough) Along Princes Square and Wulfruna Street;

Route No. 4 (In the borough and in the parish of Penn (Upper) in the rural district of Seisdon) From Queen Square along Victoria Street Worcester Street Penn Road to the junction of the last-named road with Spring Hill Lane;

Route No. 4A (In the borough and in the said parish of Penn (Upper)) Along Lea Road and Stubbs Road;

Route No. 5 (In the borough the urban district of Heath Town and the urban district of Wednesfield) From Princes Square along Broad Street Wednesfield Road Wolverhampton Road Rookery Street High Street to and terminating at Pinfold Bridge;

Route No. 6 (In the borough and in the urban districts of Heath Town and Willenhall) Along Five Ways Horseley Fields Lower Horseley Fields Willenhall Road Wolverhampton Road High Street New Road to its junction with Market Place; A.D. 1925.
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Route No. 7 (In the borough) From Victoria Square along Pipers Row and Bilston Street to the entrance to the depôt of the Corporation in Bilston Road;

Route No. 7A (In the borough) From Bilston Street through the Cattle Market to Cleveland Road;

Route No. 8 (In the borough the urban districts of Sedgley and Coseley and the county borough of Dudley) Along Snow Hill Dudley Road Wolverhampton Road High Street Bull Ring Dudley Street High Holborn Dudley Road Clarence Street Kent Street Burton Road Highland Road Salop Street Wolverhampton Street Priory Street and Vegetable Market;

Route No. 8A (In the borough) Along Snow Hill Garrick Street and Bilston Street;

Route No. 8B (In the borough) From the junction of Garrick Street and Snow Hill along Cleveland Road to its junction with Bilston Road:

Provided that:—

- (a) Before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval;
- (b) No turning point shall be fixed upon any road or street belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld;
- (c) Unless authorised in that behalf by Act of Parliament the Corporation shall not run trolley vehicles over that portion of Route No. 6 which is in the urban districts of Heath Town and Willenhall without the consent in writing of the Wolverhampton District Electric Tramways Limited so long as that company own tramways on such portion.

A.D. 1925.

(3) The provision maintenance equipment and user of trolley vehicles by the Corporation upon Routes Nos. 3 3A and 5 and the abandonment or discontinuance of tramways upon any or all of those routes before the date of this Act and the exercise by the Corporation in relation to those routes before that date of any of the powers of this Act is hereby sanctioned and confirmed.

(4) As from the date upon which and so long as a service of trolley vehicles or omnibuses is provided by the Corporation in lieu of a tramway service upon the route of any of the Corporation tramways the revenue of the tramway undertaking of the Corporation shall (to such extent as the Corporation may from time to time by resolution determine) cease to be charged with any expenses incurred by the Corporation upon or in connection with the maintenance and repair of roads under any statutory enactment relating to that undertaking but nothing in this subsection shall relieve the Corporation of any liability attaching to them in respect of such maintenance and repair.

Confirma-
tion of
scheduled
agreements.

6. The following agreements namely—

- (a) the agreement made the sixteenth day of July nineteen hundred and twenty-five between the Wolverhampton District Electric Tramways Limited of the first part the Corporation of the second part the Shropshire Worcestershire and Staffordshire Electric Power Company of the third part the mayor aldermen and burgesses of the borough of Dudley of the fourth part and the British Electric Traction Company Limited of the fifth part; and
- (b) the agreement made the twenty-ninth day of April nineteen hundred and twenty-five between the Corporation of the first part the Sedgley Urban District Council of the second part and the Coseley Urban District Council of the third part;

which agreements are set forth in the first and second parts of the First Schedule to this Act are hereby confirmed and made binding on the parties thereto respectively and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be

agreed between the said parties in writing under their respective common seals. A.D. 1925.

7.—(1) (a) The Corporation shall not commence to run trolley vehicles on any part of Route No. 6 referred to in the section of this Act of which the marginal note is “Power to use trolley vehicles” before the ninth day of November nineteen hundred and twenty-seven unless they shall prior to that date have acquired the tramways now belonging to the Wolverhampton District Electric Tramways Limited (in this section called “the company”) which exist on the portion of the said route lying within the urban district of Willenhall (which tramways are in this section called “the said tramway”).

As to
trolley
vehicle
Route
No. 6.

(b) If the Willenhall Urban District Council (in this section called “the council”) shall on or before the ninth day of November nineteen hundred and twenty-seven serve upon the company the notice referred to in section 14 of the Wolverhampton Tramways Act 1899 and shall proceed to purchase the undertaking referred to in that section the Corporation shall not commence to run trolley vehicles on any part of the said Route No. 6 until the council shall have acquired the undertaking referred to in the said section 14 and transferred the same to the Corporation.

(2) The Corporation shall not except with the consent of the council under their common seal commence to run trolley vehicles on any part of the said Route No. 6 which is situate within the district of the council unless they shall have constructed Work No. 13 described in the section of this Act of which the marginal note is “Power to construct street improvements.”

(3) The council shall consent to the exercise by the Corporation of the powers conferred upon the Corporation by section 48 of the Act of 1899 in respect of so much of the said tramway as is situate in the Willenhall Urban District.

(4) The Corporation shall so soon as they shall have purchased the said tramway remove the granite setts rails and track of the said tramway being that portion of the road repairable by the company (all of which is hereinafter included in the expression “the tramway track”) in such manner as not to interfere unnecessarily with traffic arrangements and such setts rails and track

A.D. 1925. shall be and remain the property of the Corporation and shall forthwith be removed by or at the expense of the Corporation. The Corporation will accept responsibility for all accidents and damage to persons or property which may arise in connection with such removal and will indemnify the council from all actions claims and demands which may be made against them for or in respect of any such accidents or damage as aforesaid.

(5) Any right of the council which is existing at the date of this Act or would but for the provisions of this section arise after that date to purchase such part of the said tramway shall cease and determine immediately the Corporation shall have purchased so much of the undertaking of the company as is situate upon any part of Route No. 6 authorised by this Act which is within the district of the council.

(6) (a) The council shall immediately the tramway track has been removed by the Corporation in accordance with the provisions of subsection (4) of this section or simultaneously with such removal reconstruct the portion of the carriageway from which the tramway track has been removed in a proper and workmanlike manner with six inches of tarmac laid upon the existing concrete foundations and the Corporation shall pay towards the cost of such reconstruction a sum of seven shillings per square yard. Provided that if the council decide to reconstruct the whole width of the said carriageway with a two-inch bitumistic carpet laid upon the existing concrete foundation under the tramway track and upon a six-inch concrete foundation to be laid in the portions of the road on each side of such track the Corporation shall pay towards the cost of the reconstruction of that part of the said carriageway which is at the date of this Act repairable by the company and is occupied by the tramway track the sum of eight shillings and sixpence per square yard.

(b) Any payment which the Corporation are required to make under the provisions of this subsection shall be made each month for such portion of the work as may have been completed by the end of such month and such payments shall (subject to the provisions of subsection (2) of this section) discharge the Corporation for all time from all claims which may be brought or made against them in respect of any adaptation alteration or recon-

struction of any road in the district of the council forming part of the said Route No. 6 or the maintenance and repair of any such road. A.D. 1925.
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(7) After the said carriageway shall have been reconstructed in accordance with the provisions of the last preceding subsection of this section the council shall maintain the same in a reasonable state of repair.

(8) The reconstruction of the carriageway shall be carried out by the council with all reasonable speed and during the work of reconstruction the Corporation shall provide a temporary passenger service along the route of the said tramway either by continuing to operate tramways thereover or by the running of trolley vehicles or omnibuses or partly by one means and partly by the other and such temporary service shall be provided in as efficient a manner as all the circumstances of the case reasonably admit and the reconstruction shall be carried out in such a way as to facilitate as far as possible the operation of such service.

(9) As soon as practicable after the reconstruction of the said carriageway the Corporation shall provide and thereafter maintain along the said Route No. 6 a proper and adequate service of trolley vehicles.

(10) The Corporation will consult with the council as to the points which are to be fixed as stopping places on that portion of the said Route No. 6 which is within the district of the council and where necessary (subject to any necessary consents being obtained) will provide and maintain a lamp at each stage but the decision of the Corporation as to such stopping places or lamps shall be final.

(11) The Corporation will construct or provide a covered shelter or waiting-room near the termination in the urban district of Willenhall of Route No. 6 for the convenience of persons waiting to board the trolley vehicles and subject to their obtaining any necessary consents provide barriers in any such shelter for regulating the boarding of the said vehicles on the queue system.

(12) Any question arising between the Corporation and the council under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed failing agreement between the parties in

A.D. 1925. dispute by the Minister of Transport and subject as
— aforesaid the provisions of the Arbitration Act 1889 shall
apply to any such reference and determination.

As to
trolley
vehicle
Route
No. 8.

8. Notwithstanding anything contained in this Act:—

(a) The Corporation shall not after the thirty-first day of December nineteen hundred and thirty-eight run any trolley vehicle or omnibus upon such part of Route No. 8 referred to in the section of this Act of which the marginal note is "Power to use trolley vehicles" as is situate in the county borough of Dudley without the consent in writing of the mayor aldermen and burgesses of that county borough which consent may be given upon and subject to such terms and conditions as may be specified in such consent:

(b) The Corporation shall not after the expiration of a period of thirty years from the first day of July nineteen hundred and twenty-six run any trolley vehicle or omnibus upon such part of the said Route No. 8 as is situate in the urban district of Sedgley or the urban district of Coseley without the consent in writing of the Sedgley Urban District Council or the Coseley Urban District Council (as the case may be) which consent may be given upon and subject to such terms and conditions as may be specified in such consent.

As to
electrical
works.

9.—(1) Subject to the provisions of this Act the Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to the provisions contained in Part II. of the Tramways Act 1870 and in this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and

telegraphic apparatus therein or thereunder and may supply electrical energy for the purpose of working the trolley vehicles : A.D. 1925.
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Provided that no post or other apparatus shall be erected on the carriageway of any public street or road except with the consent of the Minister of Transport.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(3) The Corporation may also adapt and use for the purpose of working trolley vehicles any apparatus and equipment already provided for working tramways in streets or roads along which they are or may be authorised to run trolley vehicles.

(4) In this section the expression generating station has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

10. The following provisions for the protection of the London Midland and Scottish Railway Company and the Great Western Railway Company (each of which is in this section referred to as "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect in relation to the exercise by the Corporation of the powers of this Part of this Act so far as they relate to trolley vehicles (that is to say) :— For protection of
railway
companies.

(1) In this section the word "apparatus" means standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles under or in pursuance of this Part of this Act :

(2) The apparatus where the same shall be erected or placed upon across under or over any bridge or the approaches thereto or over any level crossing or other work belonging to or maintainable by the company or will otherwise affect the same shall be erected or placed and maintained so as not to affect injuriously the structure of any such bridge or approaches and

A.D. 1925.

according to plans and particulars to be previously submitted to and reasonably approved by the company. Provided that if the company do not within twenty-eight days after such submission signify their disapproval of such plans and particulars they shall be deemed to have approved thereof. All such apparatus shall be erected or placed under the superintendence (if the same be given) and to the reasonable satisfaction of the company. The Corporation shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

- (3) The Corporation shall on demand pay to the company the reasonable expense (if any) of watching the railway and property of the company which shall be necessary during and in consequence of the execution or repair by the Corporation under or in pursuance of this Part of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :
- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or siding belonging to or maintainable by the company or any traffic thereon :
- (5) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to any works or property which they may be

liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors in connection with the apparatus or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :

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- (6) If the company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable despatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :
- (7) The Corporation shall from time to time pay to the company any additional expense which the

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company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the works or apparatus :

- (8) If and when the company shall require to reconstruct widen lengthen alter repair or paint any bridge under which any electric wire of the Corporation has been placed under or in pursuance of this Part of this Act and if it shall be reasonably necessary for them so to do the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction widening lengthening alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (9) If having regard to the proposed position of any apparatus of the Corporation authorised by or in pursuance of this Part of this Act when considered in relation to the position of the works of the company at any point where any apparatus will be constructed over or under the railway or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the company by the Corporation Provided that notice of their intention to execute such works shall be given by the company to the Corporation :
- (10) The Corporation shall not for the purposes of this Part of this Act make attachments to any

bridge or other property of the company without the consent in writing of the engineer of the company which shall not be withheld unreasonably such attachments if allowed to be temporarily removed at any time when required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge : A.D. 1925.

- (11) If any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to arbitration the arbitrator being appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration :
- (12) Section 11 of the Act of 1920 shall extend and apply for the protection of the company as if that section were with any necessary modifications set out in this section and as if the London Midland and Scottish Railway Company were referred to therein as well as the Great Western Railway Company.

11. Notwithstanding anything contained in this Part of this Act the following provisions for the protection of the company of proprietors of the Birmingham Canal Navigations (in this Act referred to as "the canal company") shall unless otherwise agreed in writing between the Corporation and the canal company have effect:— For protection of Birmingham Canal Navigations.

- (1) All standards brackets conductors mains cables wires posts poles and other apparatus and equipment by this Part of this Act authorised to be placed erected and maintained by the Corporation (all of which is in this section referred to as "trolley vehicle equipment") where the same shall be made upon across under or over any bridge or the approaches thereto or other works belonging to or maintainable by the canal company or will otherwise affect the same shall be placed erected and maintained

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so as not to affect injuriously the structure of any such bridge approaches or other works and according to plans and sections to be previously submitted to and reasonably approved by the canal company. Provided that if the canal company do not within twenty-one days after such submission signify their disapproval of such plans and sections they shall be deemed to have approved thereof. All such works shall be executed according to the plans and sections so approved and under the superintendence (if the same be given) and to the reasonable satisfaction of the canal company :

- (2) The Corporation shall so maintain and use the trolley vehicle equipment authorised by this Part of this Act as not to affect injuriously any such bridge approaches or other work :
- (3) The Corporation shall not in any manner in the execution maintenance repair or user of any of their trolley vehicle equipment obstruct or interfere with the free uninterrupted and safe user of any canal or other works belonging to the canal company or any traffic thereon :
- (4) The Corporation shall be responsible for and make good to the canal company all losses damages and expenses which may be occasioned to the canal company or any of their works or property or to the traffic on their canals by or by reason of the execution failure or user of any of the trolley vehicle equipment or by or by reason of any act default or omission of the Corporation or of any person in their employment or of any contractors for the erection of such equipment or any part thereof and the Corporation shall effectually indemnify and hold harmless the canal company from all claims and demands upon or against them by reason of such execution failure or user or of any such act default or omission :
- (5) If the canal company shall hereafter in the exercise of their existing powers require to widen lengthen strengthen reconstruct alter or repair any such bridge under along or over which the trolley vehicle equipment is laid or

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the approaches thereto or to widen or alter any canal thereunder or thereover and if it shall be reasonably necessary for such purpose that such equipment be temporarily taken up diverted or removed and if the canal company accordingly give to the Corporation twenty-one days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the said equipment shall be stopped or delayed or such part of the equipment shall be taken up diverted or removed as reasonably required in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the trolley vehicle equipment shall at the like expense be restored with all practicable despatch and the canal company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

- (6) The Corporation shall from time to time pay to the canal company any additional expense in connection with the reconstruction widening alteration maintenance or repair (under their existing powers) of any of the bridges of the canal company reasonably incurred by the canal company and necessitated by the existence under along or over any such bridge of trolley vehicle equipment authorised by this Act :
- (7) If and when the canal company shall require to reconstruct alter repair or paint any bridge under along or over which any trolley vehicle equipment of the Corporation has been placed the Corporation shall if it be reasonably necessary in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting either cut off the electric current from the trolley vehicle equipment under along or over such bridge at such time

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or shall adopt such other means of protection to workmen as shall be agreed between the Corporation and the engineer of the canal company or failing agreement determined by arbitration under this section :

- (8) The Corporation shall not for the purposes of this Act make attachments to any part of the said works or bridges of the canal company without the consent in writing of the engineer of the canal company (which consent shall not be unreasonably withheld) or except on such terms as the said engineer may reasonably impose and such attachments shall be temporarily removed at any time when reasonably required by him in connection with the maintenance and reconstruction or alteration (within their existing powers) of the said works or bridges :
- (9) If any difference arises under this section between the Corporation and the canal company the same shall unless otherwise agreed be settled by arbitration the arbitrator to be an engineer to be appointed by the Minister of Transport at the request of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Corporation to have exclusive right of using apparatus for working trolley vehicles.

12. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by agreement with the Corporation) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

Vehicles not to be deemed light locomotives or motor cars.

13.—(1) The trolley vehicles authorised by this Act shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to those

exceptions neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles. A.D. 1925.

(2) The trolley vehicles authorised by this Act shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

14. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles authorised by this Act as hackney carriages. Licence duties on trolley vehicles.

15. The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport. Approval of vehicles by Minister of Transport.

Before applying to the Minister of Transport for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Corporation shall give to such railway company notice of the weight of the trolley vehicles proposed to be used by them and the Minister of Transport shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that notice of such objections shall be forwarded by such railway company to the Corporation at the same time as the same are submitted to the Minister of Transport.

16. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for traffic by the Minister of Transport. Inspection by Minister of Transport.

17.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and Application of certain provisions of Tramways Act 1870 to

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trolley
vehicles.

such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways :—

Part II. (Relating to the construction of tramways) except sections 25 28 and 29;

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

Section 51 (Penalty on passengers practising frauds on the promoters);

Section 53 (Penalty for bringing dangerous goods on the tramway);

Section 55 (Promoters or lessees to be responsible for all damages);

Section 56 (Recovery of tolls penalties &c.);

Section 57 (Right of user only);

Section 60 (Reserving powers of street authorities to widen &c. roads); and

Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

Application
of certain
tramway
and
omnibus
provisions.

18.—(1) Subject to the provisions of this Act the following provisions of the Act of 1899 the Order of 1902 the Act of 1904 the Act of 1908 and the Act of 1920 shall extend and apply to the trolley vehicles authorised by this Act as if those provisions were with

all necessary modifications re-enacted in this Act (that A.D. 1925.
is to say) :—

to trolley
vehicles.

The Act of 1899—

- Section 33 (Rates for passengers);
- Section 34 (Passengers' luggage);
- Section 35 (Rates for animals and goods);
- Section 36 (Corporation not bound to carry animals and goods);
- Section 37 (As to fares on Sundays or holidays);
- Section 39 (Periodical revision of rates and charges);
- Section 41 (Motive power);
- Section 43 (Special provisions as to use of electrical power);
- Section 46 (Byelaws);
- Section 50 (Working agreements);
- Section 55 (Orders &c. of Board of Trade);
- Section 57 (Power to acquire patent rights);
- The Third Schedule.

The Order of 1902—

- Section 8 (For protection of Postmaster-General);
- Section 9 (Cheap fares for labouring classes).

The Act of 1904—

- Section 19 (Attachment of brackets to buildings);
- Section 20 (Waiting-rooms);
- Section 21 (Penalty for malicious damage).

The Act of 1908—

- Section 5 (Use of tramway posts by Postmaster-General).

The Act of 1920—

- Section 10 (Conditions as to running of omnibuses) except subsections (1) and (2);
- Section 19 (Conveyance of mails);
- Section 23 (Cloak-rooms &c.);

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- Section 24 (Power to reserve cars for special purposes);
- Section 25 (Power to require intending passengers to wait in lines or queues);
- Section 26 (Stopping and starting places);
- Section 27 (Through cars and omnibuses);
- Section 28 (Attachment of signs indicating stopping places to lamp-posts &c.);
- Section 30 (Lost property);
- Section 31 (Payment of fares rates and charges);
- Section 32 (Power for Corporation to suspend traffic);
- Section 33 (Use of tramways for sanitary purposes);
- Section 35 (For protection of railway companies).

(2) (a) In the application of the provisions referred to in subsection (1) of this section the same shall be read and have effect as if the working equipment for trolley vehicles were tramways within the meaning of the said provisions and as if trolley vehicles were carriages used on the Corporation's tramways or were omnibuses of the Corporation (as the case may be) and as if the trolley vehicle undertaking authorised by this Act formed part of the tramway undertaking authorised by the Act of 1899 the Order of 1902 the Act of 1904 the Act of 1908 and the Act of 1920.

(b) In the application of the said section 50 of the Act of 1899 that section shall be read and have effect as though the words "local authority company body or" "person owning or working trolley vehicles or authorised" "to work such vehicles" were substituted therein for the words "owning authority" wherever those words occur.

(c) In the application of the said section 9 of the Order of 1902 that section shall be read and have effect as though the words "half-past seven" were substituted for the word "seven" and the words "half-past five" were substituted for the word "six" in subsection (1) thereof.

(3) Provided that the said trolley vehicles shall only be used for the purpose of conveying passengers and parcels not exceeding fifty-six pounds in weight and dogs

in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not be used for the carriage of any minerals or any other animals or goods. A.D. 1925.

19. The following provisions for the protection and benefit of the Staffordshire County Council (in this section called "the county council") shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the county council and the Corporation apply and have effect as regards the exercise by the Corporation of the powers conferred upon them by the foregoing provisions of this Part of this Act upon any main road or county or main road bridge or approach vested in the county council (that is to say) :—

(1) (a) All posts standards section-boxes sheds shelters waiting-rooms or other work erected or placed by the Corporation on any such road bridge or approach shall be erected or placed in such positions in or at the side thereof and in the case of all underground works at such depth and in such positions as the county council in writing under the hand of their surveyor may reasonably direct. Provided that no such direction shall be given as will conflict with any requirement of the Minister of Transport;

(b) All such sheds shelters or waiting-rooms shall be constructed according to designs which shall be submitted by the Corporation to the county council for their reasonable approval. Provided that if the county council do not give to the Corporation notice of disapproval of such designs within one calendar month of such submission they shall be deemed to have approved the same and if within the like period the county council give notice of disapproval the Corporation may appeal to the Minister of Transport who shall thereupon have power to approve such designs and upon such approval being given the Corporation may proceed to erect such sheds shelters or waiting-rooms in accordance with the designs so approved;

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(c) The Corporation shall not interfere with the structural part of any such bridge or approach without the consent in writing of the surveyor to the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine :

- (2) No advertisements other than notices referring to the running of the trolley vehicles of the Corporation shall without the consent of the county council be exhibited on any post standard box shed shelter waiting-room or other work as aforesaid of the Corporation on any such road bridge or approach :
- (3) If any post standard box shed shelter waiting-room or other work as aforesaid or any underground work shall interfere with the construction of any new main road or footpath on a main road or the diversion widening or improvement of any existing main road or footpath on a main road or the removal reconstruction widening raising or rebuilding of any such bridge or approach or becomes an obstruction the Corporation shall at their own cost alter the position thereof in such manner as the county council may reasonably direct :
- (4) If the Corporation in the execution under the powers of this Act of any works in or affecting any such road bridge or approach shall cause any damage injury or disturbance to the same and shall fail to properly make good all such damage injury or disturbance in accordance with the provisions in that behalf contained in section 27 of the Tramways Act 1870 then it shall be lawful for the county council after giving fourteen days' notice to the Corporation of the alleged failure or damage and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Corporation shall repay to the county council all costs charges and expenses which the county council shall reasonably incur in carrying out such works :

- (5) (a) The Corporation shall be responsible for and make good to the county council all losses damages and expenses which may be occasioned to the county council in relation to the structure of any county or main road bridge by or by reason of the execution or failure of any of the works authorised by this Act and the Corporation shall effectually indemnify and hold harmless the county council from all claims or demands upon or against them by reason of such execution or failure; A.D. 1925.
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(b) If the county council find it necessary that the working of the trolley vehicles over any such bridge or approach be wholly or in part stopped or delayed for the purposes of any repairs to or alteration of such bridge or approach and if the county council accordingly give the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage or delay the working of the trolley vehicles shall be stopped or delayed as may be reasonably required by such notice but no such working shall be stopped or delayed for a longer period or to a greater extent than may be absolutely necessary for effecting such purposes as aforesaid and in such case the county council shall not be liable to pay compensation in respect of such stoppage or delay as aforesaid :

- (6) The Corporation shall not unreasonably use salt or other unsuitable material for thawing the snow on any such road bridge or approach :
- (7) The Corporation shall not without the consent of the county council stop up or divert any main road or county or main road bridge or approach and such consent may be given on such terms as the county council think fit :
- (8) The provisions of this section shall be binding upon any local authority company body or person with whom the Corporation enter into any agreement with respect to the working use management occupation or maintenance of any

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trolley vehicle service of the Corporation affecting any main road or county or main road bridge or approach as if such local authority company body or person had been mentioned in this section in lieu of or in addition to the Corporation :

- (9) Any difference at any time arising between the county council and the Corporation under this section shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Minister of
Transport
may
authorise
new routes.

20.—(1) (a) If at any time hereafter the Corporation desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the roads along which they are authorised to use trolley vehicles under the foregoing provisions of this Act) they may make application to the Minister of Transport (in this section called "the Minister") and the Minister is hereby empowered to make a Provisional Order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road to which such application relates and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

(b) Any order made by the Minister of Transport under this section in relation to a road along which any tramways are for the time being situate may make provision for and in relation to the temporary or permanent abandonment or discontinuance of such tramways.

(2) No application under this section shall be entertained by the Minister unless the Corporation shall—

- (a) have published once in each of two successive weeks in the months of October or November in some newspaper or newspapers circulating in the borough or district to which the application relates notice of their intention to make

such application and have published the like notice once in the London Gazette; A.D. 1925.

- (b) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads along which it is proposed to run trolley vehicles a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Minister any objections to the grant of such application.

(3) The Minister may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister shall consider any such application and may if he thinks fit direct an inquiry in relation thereto to be held or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) (a) No Provisional Order authorising the use of trolley vehicles on any road in a district outside the borough shall be made without the consent of the local authority of such district or (where the local authority are not the road authority) without the consent of the road authority. Provided that the consent of a road authority (not being the local authority of the district) shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

(b) No Provisional Order authorising the use of trolley vehicles upon any road in which any part of the tramways or light railways for the time being owned by or leased to the Wolverhampton District Electric Tramways Limited (hereinafter called "the company") is situate or in competition with such tramways or light railways or any of them shall without the consent in writing of the company be made during such period as the same are owned by or leased to the company and

A.D. 1925. any question whether any such competition would exist shall be determined by the Minister.

(6) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(7) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(8) The Act of Parliament confirming a Provisional Order under this section shall be deemed a public general Act.

(9) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(10) Any expenses incurred by the Minister in connection with the preparation and making of any such Provisional Order under this section shall be paid by the Corporation.

As to
abandon-
ment of
tramways.

21.—(1) The tramways on any of the trolley vehicle routes authorised by the section of this Act of which the marginal note is "Power to use trolley vehicles" other than Route No. 7 may be abandoned or discontinued either temporarily or permanently. Provided that no such tramway shall be so abandoned or discontinued by the Corporation until they shall have decided by resolution to use trolley vehicles on the route of such tramway or on the portion thereof so proposed to be abandoned or discontinued.

(2) Nothing in this section shall relieve the Corporation of any liability imposed upon them by section 41 of the Tramways Act 1870 in relation to any tramway in the event of the Corporation discontinuing the working of such tramway otherwise than in accordance with the provisions of this Act.

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22. All subsisting regulations and byelaws relating to the tramways made in pursuance of the Tramways Act 1870 or of any other statutory enactment so far as the same are applicable shall with the necessary modifications apply to the trolley vehicles provided by the Corporation in pursuance of this Act.

Tramway regulations to apply to trolley vehicles.

23. For the protection and benefit of the urban district council of Tettenhall (in this section called "the council") the following provisions shall unless otherwise agreed apply and have effect and shall be in addition to and not in derogation of any other provisions of this Act or of any public Act or Acts of Parliament which may exist for the protection or benefit of the council:—

For protection of urban district council of Tettenhall.

(1) The points at which the trolley vehicles shall turn in the road at the termination of Routes Nos. 1 and 2 and 2B in the urban district of Tettenhall shall be reasonably approved by the council:

(2) Subject to the provisions of this Act the size position and construction of all poles with their several attachments shall be such as the surveyor of the council and the Corporation may agree upon and as the Minister of Transport may approve and shall be in accordance with designs and plans to be previously submitted to and reasonably approved of by the surveyor of the council:

(3) The Corporation shall provide and maintain at least one shelter for passengers in a situation to be reasonably approved by the council on trolley vehicle Route No. 1 by this Act authorised and if required by the council one shelter for passengers in a situation to be reasonably approved by the council on Routes Nos. 2 or 2B and in each case to the reasonable satisfaction of the council:

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- (4) The council may from time to time make under and according to the provisions of section 46 of the Tramways Act 1870 regulations and bye-laws for all or any of the following purposes in addition to the purposes in the said section mentioned (that is to say):—

For prohibiting the passengers from entering or leaving any vehicle at any place which the council having regard to the protection safety or convenience of the public may prescribe:

- (5) Any difference which arises between the Corporation and the council or any surveyor or other person under any of the provisions of this section except as by this section otherwise specially provided shall be deemed a matter in difference within section 33 of the Tramways Act 1870 and the provisions as to arbitration of the said section shall apply accordingly.

Trolley
vehicles
to form
part of
tramway
under-
taking.

24. Subject to the provisions of this Act the trolley vehicle undertaking authorised by this Part of this Act shall be deemed to form part of the tramway undertaking of the Corporation. Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with trolley vehicles shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking.

Accounts
to be
furnished
to Minister
of Trans-
port.

25. The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway undertaking.

Further
powers for
running
omnibuses.

26.—(1) In addition to their existing powers the Corporation may run omnibuses along the following routes:—

Omnibus Route No. 1 (In the rural district of Seisdon and the urban district of Tettenhall)
From the junction of Bradmore Road and Broad Lane along Broad Lane and Finchfield Road to the "New Inn" Finchfield;

Omnibus Route No. 2 (In the rural district of A.D. 1925.
 Seisdon) From the junction of the main road —
 from Wolverhampton to Bridgnorth and Tinager
 Hill along Tinager Hill and the Pattingham Road
 to the Church Gates Pattingham.

(2) The following provisions of the Act of 1920 shall
 so far as they are applicable extend and apply to the
 exercise of the powers of this section as if they were
 with any necessary modifications re-enacted in this Act
 (that is to say):—

Subsections (3) (4) and (5) of section 9 (Power to
 provide and run omnibuses);

Section 10 (Conditions as to running of omni-
 buses) except subsections (1) and
 (2);

Section 12 (As to cesser of powers);

Section 13 (Provision in event of certain powers
 not being exercised within limited
 period);

Section 16 (Passengers' luggage);

Section 17 (Parcels and dogs);

Section 18 (Omnibuses to form part of tramway
 undertaking);

Section 19 (Conveyance of mails);

Section 20 (Shelters or waiting-rooms);

Section 21 (Working and other agreements);

Section 22 (Payment of contribution in the event
 of working agreements &c. as to
 omnibus powers);

Section 23 (Cloak-rooms &c.);

Section 24 (Power to reserve cars for special
 purposes);

Section 25 (Power to require intending passengers
 to wait in lines or queues);

Section 26 (Stopping and starting places);

Section 27 (Through cars and omnibuses);

Section 28 (Attachment of signs indicating stop-
 ping places to lamp-posts &c.);

Section 30 (Lost property);

Section 31 (Payment of fares rates and charges);

Section 35 (For protection of railway companies).

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—
Fares and
charges.

27.—(1) Subject to the provisions of this section the Corporation may demand and take for passengers and parcels carried on the omnibuses of the Corporation fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport.

(2) (a) Any application for a revision of such maximum fares or charges may be made by the Corporation or by the local authority of any district in which such omnibuses are run.

(b) Before approving any maximum fares or charges or any revision thereof under this section the Minister of Transport may direct an inquiry to be held.

(c) Where the Minister causes any such inquiry as aforesaid to be held all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister may by order direct either by the Corporation or by any of the parties on whose representation the inquiry is held or partly by the Corporation and partly by any of such parties and the Minister may certify the amount of the expenses so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

(3) Section 15 (Fares and charges) of the Act of 1920 is hereby repealed.

As to
byelaws
&c. under
this Part
of this Act.

28. Any byelaws and regulations made by the Corporation under the provisions contained in this Part of this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

PART III.

STREET WORKS AND LANDS.

Power to
construct
street
improve-
ments.

29.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described together with all necessary or proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of such works

or for the purpose of providing space for the erection of buildings adjoining or near to such works or for other the purposes of this Part of this Act. A.D. 1925.

(2) The works hereinbefore referred to and authorised by this Act will (except where otherwise stated) be situate in the borough and are—

Work No. 1 A widening and improvement of North Street on the westerly side thereof;

Work No. 2 A widening and improvement of Red Lion Street on its easterly side;

Work No. 3 A new street including a widening of the passage known as Mitre Fold;

Work No. 4 A widening and improvement of Wulfruna Street on its northerly side;

Work No. 5 A widening and improvement of Market Street on its westerly side;

Work No. 6 A widening and improvement of Victoria Street on its westerly side;

Work No. 7 A widening and improvement of Cockshutts Lane and of Green Lane on their westerly sides and of Dudley Road on its easterly side;

Work No. 8 A widening and improvement of Cockshutts Lane and Green Lane on their easterly sides;

Work No. 9 A widening and improvement of Dudley Road on its easterly side;

Work No. 10 A new street (including the widening and improvement of the existing streets known as Sutherland Avenue and Dixon Street and the widening of the bridges carrying the last-named street under the London Midland and Scottish Railway and over the Birmingham Canal) commencing by a junction with Willenhall Road at a point opposite Old Heath Road and terminating by a junction with Thompson Avenue;

Work No. 11 (In the parish of Penn (Upper) in the rural district of Seisdon) A widening at the junction of Penn Road and Spring Hill Lane;

Work No. 12 (In the said parish of Penn (Upper)) A further widening at the junction of Penn Road and Spring Hill Lane;

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Work No. 13 (In the urban district of Willenhall)
A widening at the junction of Market Place and
New Road;

Work No. 14 A widening of Rookery Lane on its
northerly side.

(3) Provided that notwithstanding anything contained in this Act or shown upon the deposited plans the Corporation shall not otherwise than by agreement acquire any interest of Hortons' Estate Limited in the lands numbered 1 2 3 and 4 on the deposited plans and in the deposited book of reference in relation to Street Work No. 6.

(4) Provided also that notwithstanding anything contained in this Act or shown upon the deposited plans the Corporation shall not otherwise than by agreement acquire any interest of James Beattie or James Beattie Limited in any part of the lands numbered 15 to 20 inclusive on the deposited plans in relation to Street Work No. 6 except the parts thereof which lie between Victoria Street and the proposed line of improvement marked on the deposited plans.

For protec-
tion of
Postmaster-
General.

30. Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not otherwise than by agreement enter upon take or use the property numbered 25 on the said plans relating to Work No. 1 and Work No. 2 or any part of that property.

For protec-
tion of
Hortons'
Estate
Limited.

31.—(1) If the Corporation shall under the powers of this Act acquire any portion of the lands numbered 21A on the deposited plans and in the deposited book of reference in relation to Street Work No. 5 lying to the westerly side of the proposed line of improvement shown upon those plans and before they shall close any existing rights of way over any such portion of the said lands they shall provide means of access for Hortons' Estate Limited and their lessees and tenants by means of a roadway in the situation and of the dimensions shown upon the plan signed in duplicate by Harry Bradley Robinson on behalf of the Corporation and by Thomas Horton on behalf of Hortons' Estate Limited or in such other situation or of such other dimensions as may be agreed between the Corporation and Hortons' Estate Limited.

(2) The provisions of this section shall be taken into consideration by the tribunal in considering any question or dispute with regard to the compensation payable by the Corporation in respect of the acquisition by them under the powers of this Act of the premises numbered 21 and 21A on the said deposited plans. A.D. 1925.

32. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions shall unless otherwise agreed in writing between the parties to the agreement hereinafter referred to or such of the said parties as may be concerned with any proposed modification thereof have effect (that is to say) :— For protection of certain land-owners.

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of an agreement dated the twenty-second day of July nineteen hundred and twenty-five and made between the Corporation of the first part Hortons' Estate Limited of the second part W. Butler & Co. Limited of the third part Henry Start and William Lowe of the fourth part and William Edward Hudson of the fifth part acquire any interest of any of the parties to such agreement in any part of the lands numbered 5 to 14 inclusive on the deposited plans in relation to Street Work No. 6 but nothing in this section shall prevent the Corporation from acquiring the rights or interests of any other party in any part of such lands.

33. For the protection of W. Butler & Co. Limited (in this section called "the company") the following provisions shall unless otherwise agreed in writing between the company and the Corporation have effect (that is to say) :— For protection of W. Butler & Co. Limited.

(1) The company shall apply for and use their best endeavours to obtain an order under section 24 of the Licensing (Consolidation) Act 1910 for the special removal of the justices' licence attached to the premises in Victoria Street known as "the Spread Eagle" (being the property delineated on the deposited plans and thereon numbered 21) from those premises to other premises to be erected at the corner of Hordern Road and Court Road on the ground that the said first-mentioned premises are about

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to be pulled down under this Act for the improvement of Victoria Street or other public purposes in connection with such improvement :

- (2) The Corporation shall not be entitled to dispossess the company from their occupation and use of the said premises numbered 21 on the deposited plans (notwithstanding that the same shall have been purchased by the Corporation) until—

(a) the said premises to be erected at the corner of Hordern Road and Court Road are ready for occupation by the company for the purposes of their business; or

(b) the expiration of three years from the date of the passing of this Act;

whichever of those events shall first happen.

For further
protection
of Birmingham
Canal
Naviga-
tions.

34. Notwithstanding anything contained in this Part of this Act or shown upon the deposited plans and sections the following provisions for the protection of the canal company shall unless otherwise agreed in writing between the Corporation and the canal company have effect with respect to the construction and maintenance of Work No. 10 authorised by this Act (that is to say) :—

- (1) The said Work No. 10 where the same is carried over the canal of the canal company shall when constructed by the Corporation be effected by the widening or reconstruction of the existing Rough Hill Lane bridge of the canal company or by the construction of a new bridge (in the place of the present Rough Hill Lane bridge) and the Corporation shall at their own expense carry out the work of such widening reconstruction or construction (as the case may be) over the said canal towing-path and works of the canal company in a good substantial and workmanlike manner and to the reasonable satisfaction of the engineer of the canal company and according to plans sections and specifications which shall have been reasonably approved by him and in particular so that the clear opening or span of the widened or reconstructed or new bridge (hereinafter called "the bridge") shall be sufficient to clear or leave unobstructed

the waterway of the canal and a space of not less than six feet eight inches wide on the towing-path side thereof and the soffit of the arch at the crown or the underside of the girders for the whole length of crossing over the canal and towing-path of the canal company shall be not less than eight feet six inches above the existing weir level of the canal and in the case of an arch no part of the underside thereof for the width of the waterway of the canal and the said space of six feet eight inches shall be less than seven feet six inches above the present level of the towing-path :

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- (2) The Corporation shall at their own expense at all times after the bridge shall have been completed keep the same together with all works belonging to or connected therewith including the roadway thereover in good repair to the reasonable satisfaction of the engineer for the time being of the canal company and in case of any want of repair to such bridge or any works belonging thereto or connected therewith and upon notice in writing thereof being given to them by the canal company (or if the Corporation do not agree that such want of repair exists upon a decision to that effect by an arbitrator appointed under this section) then the Corporation shall within the space of twenty-one days after such notice or decision (as the case may be) commence any work of repair that may be reasonably necessary and shall thenceforward proceed therein with all reasonable expedition until such work of repair shall be wholly completed and if the Corporation shall fail to commence the same within the said space of twenty-one days or to proceed therein with all reasonable expedition as aforesaid it shall be lawful for the canal company to carry out the same and all the reasonable expenses thereof shall be repaid by the Corporation to the canal company Provided always that during the construction of the bridge and thereafter during any work of repair the engineer for the time being of the canal company with the

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requisite assistants and workmen shall at all reasonable times have access to such bridge and be at liberty to inspect the workmanship and materials thereof :

- (3) The Corporation shall not under the provisions of this Act acquire compulsorily the lands of the canal company which are numbered 30 on the deposited plan in respect of the said Work No. 10 but the canal company shall grant to the Corporation when requested in writing by them so to do without payment therefor such easements and rights over those lands as may be reasonably necessary to enable them to widen reconstruct or construct the bridge and road thereover :
- (4) The Corporation shall not in the construction maintenance repair or user of the bridge or any of their works except so far as may be reasonably necessary obstruct or interfere with the free uninterrupted and safe user of the said canal or other works belonging to the canal company or any traffic thereon :
- (5) The Corporation shall give fourteen days' notice in writing to the canal company of their intention to commence the bridge and such notice shall be accompanied by plans sections and specifications showing the nature of the work proposed Provided that if such plans sections and specifications have already been submitted to the canal company in accordance with the foregoing provisions of this section it shall not be necessary to submit them under this section :
- (6) The Corporation shall be responsible for and make good to the canal company all losses damages and expenses which may be occasioned to the canal company or any of their works or property or to the traffic on their canal or the towing-path thereof or to any company or person using the same by or by reason of the execution failure or user of any of the intended works or by or by reason of any act default or omission of the Corporation or of any person

in their employment or of any contractors for the intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the canal company from all claims and demands upon or against them by reason of such execution failure or user or of any such act default or omission : A.D. 1925.

(7) If the canal company shall hereafter in the exercise of their existing powers require to widen or alter the said canal under the bridge and if it shall be reasonably necessary for such purpose that the bridge or works be temporarily taken down or stopped up and if the canal company give to the Corporation twenty-one days' notice in writing (or in case of emergency such notice as may be reasonably practicable) of such necessity then the user of the bridge by the Corporation shall be stopped or delayed and the amount by which any expense reasonably incurred by the canal company in so doing exceeds the expense which the canal company would have had to incur if the existing bridge had remained shall be repaid to them by the Corporation but no such user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and the bridge shall be restored by the canal company with all practicable despatch and the canal company shall not be liable to pay compensation in respect of such stoppage delay or taking down diversion or removal :

(8) The Corporation shall from time to time pay to the canal company any additional expense which the canal company may reasonably incur in effecting the widening altering or repairing or in the maintenance of the said canal or towing-path or other works of the canal company by reason of the exercise by the Corporation of the powers contained in this Part of this Act and the canal company shall give notice accompanied by sufficient plans and specifications to the Corporation of such works as may be reasonably necessary and may after twenty-one

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days from the date of the notice or forthwith in case of emergency proceed to execute the same :

- (9) If having regard to the proposed position of any works of the Corporation by this Part of this Act authorised when considered in relation to the position of the works of the canal company at any point where any works or apparatus will be constructed over along or under the canal or other works of the canal company it becomes necessary that the works of the canal company shall be altered the canal company may after giving twenty-one days' notice in writing accompanied by sufficient plans and specifications to the Corporation execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be repaid to the canal company by the Corporation :
- (10) The widening of the said road where it adjoins the property of the canal company and all works connected therewith shall except as aforesaid be completed at the expense of the Corporation and the canal company shall not whether as frontagers or otherwise be required to contribute to such expense :
- (11) Nothing contained in this Part of this Act shall deprive the canal company of any right of support for their canal and works from the land adjoining their said canal or from the mines or minerals in or under the same :
- (12) If any difference shall arise between the Corporation and the canal company or their respective engineers under the provisions of this section or as to anything to be done or not to be done thereunder such difference shall be referred to and be determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

35. For the protection of the Great Western Railway Company (hereinafter referred to as "the company") the following provisions shall unless otherwise agreed between the company and the Corporation apply and have effect (that is to say):—

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For protec-
tion of
Great
Western
Railway
Company.

- (1) Contemporaneously with the construction of Work No. 10 by this Act authorised the Corporation shall construct as part thereof a new road which shall be dedicated by the Corporation as a public highway for ever approximately in the position shown in red on the plan signed by John Christian Lloyd on behalf of the company and George Green on behalf of the Corporation and shall carry the same over the company's railway by means of a wrought iron or steel girder bridge with wrought iron or steel flooring and a wrought iron or steel pier founded on brickwork or concrete in such position as shall be reasonably approved by the engineer of the company (hereinafter called "the engineer") and such bridge shall be constructed of two spans the north-easternmost of which shall be not less than sixty-seven feet and the south-westernmost fifty-one feet both measured on the square and such bridge shall be constructed and maintained with a clear headway throughout each span of not less than fifteen feet above the existing level of the upper surface of the rails upon the railway of the company at the point of crossing and with a width of fifty feet between the parapets and with such constructional depth as the company may reasonably require :
- (2) The said bridge shall be constructed so as not to injure the stability of and so as to leave undisturbed at all times the lines of railway and other works connected therewith of the company and so as in no way to obstruct impede endanger or interfere with the free uninterrupted and safe use of the railway of the company or with the traffic thereon and if any such obstruction impediment damage or interference shall be caused or take place the Corporation shall pay full compensation to the company in respect thereof :

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- (3) The Corporation shall construct the bridge and any temporary works in connection therewith in accordance with plans sections drawings and specifications and of such quality and strength of materials and in every other respect as shall be previously submitted to and reasonably approved in writing by the engineer and the Corporation shall not commence the construction of the bridge or enter upon or interfere with any lands works or property belonging to or used by the company until such plans sections drawings and specifications have been so submitted and approved or determined by arbitration under this section. Provided that if within six weeks of the receipt of such plans sections drawings and specifications the engineer has not signified his disapproval he shall be deemed to have approved thereof :
- (4) The bridge and any temporary works in connection therewith shall be executed by and in all things at the expense of the Corporation and under the superintendence (if given) and to the reasonable satisfaction of the engineer. Provided that if the company so elect they may themselves construct the bridge and may recover the reasonable costs of so doing from the Corporation (including compensation payable to any workmen or their legal representatives or dependants who may be injured or killed whilst employed by the company in and about such works) :
- (5) The structure of the said bridge shall be maintained by the company and the reasonable costs of their so doing shall be repaid to them by the Corporation :
- (6) The Corporation shall not (except with the previous consent in writing of the company) purchase or acquire any lands or property of the company but the Corporation may purchase and take and the company on being requested so to do by the Corporation shall sell and grant accordingly in perpetuity such easements or rights as may be reasonably necessary for the construction and maintenance of the bridge and

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the Corporation shall pay to the company for any easements and rights which they may so require the company to sell such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement :

- (7) The Corporation shall bear and on demand pay to the company the reasonable expenses (including any compensation payable as aforesaid) of the employment by the company during the construction of the bridge of such inspectors watchmen and signalmen to be appointed by the company as may be reasonably necessary for watching their railways and works and the conduct of the traffic thereon with reference to and during the construction of the bridge for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of the Corporation or of their contractors with reference thereto or otherwise and if by reason of the construction of the bridge and works it shall become necessary to add to alter or remove any signal cabin signal posts signals telegraph and telephone posts and wires or other works or apparatus on or connected with the railways of the company or substitute other works therefor the company may carry out such additions alterations removal or substitution and the reasonable expense thereof shall be repaid to them by the Corporation :
- (8) Any additional expense which the company may reasonably and properly incur in widening altering reconstructing repairing or maintaining their railways or other works by reason of the existence of the bridge shall be paid by the Corporation :
- (9) The Corporation shall and may contemporaneously with the purchase by them of the lands required for the construction of Work

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No. 10 purchase and thereupon sell and convey to the company the lands (including the mines and minerals thereunder) shown coloured yellow on the said plan and the price to be paid therefor to the Corporation by the company shall bear a fair proportion to that paid by the Corporation for such portion as they may acquire of the larger area of which the said lands coloured yellow form part :

- (10) Contemporaneously with the construction of the bridge the Corporation shall make junctions or connections between Work No. 10 and Sutherland Avenue to enable traffic passing along Sutherland Avenue to pass over the said Work No. 10 instead of the existing bridge carrying Sutherland Avenue over the company's railway :
- (11) Any difference arising between the Corporation and the company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

For further
protection
of Stafford-
shire
County
Council.

36. For the protection of the Staffordshire County Council (in this section called "the county council") the following provisions shall unless otherwise agreed in writing between the county council and the Corporation apply and have effect (that is to say) :—

- (1) The widenings Nos. 11 12 and 13 by this Act authorised shall be executed in accordance with plans sections and specifications to be previously submitted to and reasonably approved by the county council and under the superintendence of the surveyor of the county council (if after reasonable notice he shall choose to attend) and to his reasonable satisfaction Provided that if within one month after the submission to them of such plans sections and specifications as aforesaid the county council do not intimate

to the Corporation their approval or disapproval thereof they shall be deemed to have approved thereof : A.D. 1925.

- (2) If any question shall arise under the provisions of this section between the Corporation on the one hand and the county council on the other hand such question shall be referred to and determined by an arbitrator to be appointed on the application of either party (after notice in writing to the other of them) by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

37. For the protection of the South Staffordshire Mond Gas Company (in this section referred to as "the company") the following provisions shall in addition to any other provisions operating for the protection of the company unless otherwise agreed in writing between the Corporation and the company apply and have effect in relation to the exercise by the Corporation of the powers conferred upon them by this Part of this Act (that is to say) :— For protection of South Staffordshire Mond Gas Company.

- (1) The company may if by reason of the exercise by the Corporation of any of the powers of this Act it is necessary so to do lower or otherwise alter the situation of shore up or support any gas mains and appliances of the company (in this section referred to as "apparatus") and may provide and lay where reasonably necessary any substituted apparatus in order to maintain the supply of gas during the exercise of any such powers and the Corporation shall pay to the company the reasonable cost of such lowering alteration shoring up or supporting and of the provision and laying of any such substituted apparatus (where the same shall be reasonably necessary) after credit shall have been given to the Corporation for the value of the apparatus which has thereby ceased to be of use to the company :
- (2) If the Corporation shall give to the company notice that they are about to commence any

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works under the powers of this Act and shall require the company to furnish them with plans sections and particulars of any apparatus of the company which may be affected by reason of the exercise of such powers the company shall within fourteen days from the receipt by them of such notice furnish to the Corporation such plans sections and particulars and the Corporation shall not exercise any such powers until the expiration of that period and the Corporation shall give to the company seven days' notice before they commence to execute any works under the powers of this Part of this Act which shall be within ten feet of or be likely to affect any apparatus of the company :

- (3) The company shall after receipt of any such notice serve upon the Corporation a plan showing any proposed lowering or other alteration shoring up or supporting of the apparatus or any substituted apparatus which they may consider necessary with notice of their intention to execute or lay the same and the Company shall so far as reasonably practicable within fourteen days after the service by them of such notice and plan commence such lowering or other alteration shoring up or supporting or as the case may be the laying of such substituted apparatus and shall complete the same with all reasonable despatch :
- (4) Nothing in this Act shall relieve the Corporation from any liability for any injury caused to any apparatus of the company by reason or in consequence of the exercise by the Corporation of any of the powers of this Act :
- (5) If any difference shall arise between the Corporation and the company under the provisions of this section the same shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination,

38.—(1) If and when the Corporation shall acquire any portion of the burial ground of St. Peter's and St. Paul's Church in North Street Wolverhampton they shall before applying or using any part thereof for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in the portion so acquired of the said burial ground.

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Removal
of human
remains.

(2) Before proceeding to remove any such remains the Corporation shall publish a notice for three successive days in two local newspapers circulating in the borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial ground may give notice in writing to the Corporation of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such heir executor administrator or relative as he claims to be or if there shall be any dispute as to who shall remove the remains the question shall be determined on the application of either party in a summary manner by the registrar of the county court who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of fifteen pounds) shall be defrayed by the Corporation such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the Corporation may remove the remains of the deceased person and cause them to be interred in the same or such other burial ground or cemetery in which

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(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Corporation be removed and re-erected at the place of re-interment of such remains or at such place within the borough as the registrar of the county court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Corporation and the Corporation shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

For protec-
tion of
Wolver-
hampton
Gas Com-
pany.

39. For the protection of the Wolverhampton Gas Company (in this section called "the company") the following provisions shall in addition to any other provisions enuring for the protection of the company and notwithstanding anything in Parts III. and X. of this Act contained and unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :—

(1) In this section "apparatus" means all or any mains pipes syphons tubes fittings or other apparatus belonging to the company and "authorised work" means any work authorised by this Part or by Part X. of this Act :

(2) Before commencing to execute any authorised work in any street or road within a distance of ten feet from any apparatus the Corporation shall give fourteen days' notice to the company of their intention to execute such work and shall at the same time deliver to the company for their reasonable approval a plan and section of such authorised work and such work shall not be executed except in accordance with such

plan and section as may be so approved or determined by arbitration under this section
Provided that in the event of such plan and section not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the company
The Corporation shall also if required to do so by the company give them any such further information in relation to such authorised work as they may reasonably require :
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- (3) If it should appear to the company that the execution of such authorised work as proposed would interfere with or endanger any such apparatus or unreasonably interfere with the access thereto or impede the supply of gas the company may within a period of fourteen days from the receipt by the company of the notice referred to in subsection (2) of this section give notice to the Corporation to alter the position of such apparatus in such manner as may be reasonably necessary and any difference as to the reasonable necessity of any such alteration or the manner of carrying out the alteration shall be settled by arbitration under this section and all such alterations shall save as hereinafter provided be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the company as the circumstances will admit and to the reasonable satisfaction of the engineer of the company and under his superintendence if he think fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give :
- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus or do anything to endanger such apparatus or impede the passage of gas into or through any apparatus or unreasonably interfere with the access thereto without the consent of the company or in any other manner than the company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of gas as sufficiently as the

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same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the reasonable satisfaction of the engineer of the company :

(5) Whenever by reason of the exercise by the Corporation of the powers of Parts III. and X. of this Act any apparatus other than apparatus for which new apparatus has been substituted by or at the expense of the Corporation under the provisions of this section shall be rendered derelict or unnecessary the Corporation shall forthwith pay to the company such a sum as may be agreed between the Corporation and the company or as failing such agreement may be determined by arbitration as hereafter provided to be the value of such apparatus and such apparatus shall thereupon become the property of the Corporation and in addition to such payment the Corporation shall pay to the company the reasonable cost of and incidental to the cutting off of any such derelict or unnecessary apparatus from any other apparatus of the company :

(6) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus and shall make full compensation to the company for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by the company with gas :

(7) If the company shall desire to execute the works connected with any alteration of position removal or displacement of any apparatus under this section and shall give seven days' notice in writing thereof to the Corporation before they commence the works the company may themselves carry out the works and all reasonable expenses properly incurred by them in connection therewith shall be repaid to them by the Corporation :

- (8) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice thereof in writing to the other) by the Board of Trade and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. In settling any question under this section an arbitrator shall have regard to any duties or obligations which the company may be under in respect of their apparatus and may if he think fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the company's apparatus is used. A.D. 1925.

40. For the protection of the London Midland and Scottish Railway Company (hereinafter referred to as "the company") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed be observed and have effect in relation to the exercise by the Corporation of the powers of this Part of this Act (that is to say) :— For protection of London Midland and Scottish Railway Company.

- (1) Notwithstanding anything in this Act contained or shown on the deposited plans and sections the Corporation shall not without the previous consent in writing of the company purchase or acquire by compulsion any lands or property belonging to the company but the Corporation may purchase and take and the company shall sell and grant accordingly such easements over or through and such rights of using so much of their lands as may be necessary or convenient for the construction and maintenance of Street Work No. 10 authorised by this Act.

The amount to be paid for the acquisition of such easements and rights shall be ascertained subject to the provisions of this Act in the manner provided by the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase of lands otherwise than by

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agreement and the easements or rights so to be acquired shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purposes of any arbitration :

- (2) The Corporation shall before they commence the construction of so much of the said street work and all works in connection therewith as shall or may pass under or in any way affect the railway property or works of the company (hereinafter called "the said railway") submit to the principal engineer of the company (hereinafter called "the principal engineer") plans sections and specifications thereof for his reasonable approval and also particulars as to the stages by which it is intended to carry out the said street work for the like approval :

Provided that if the principal engineer shall for the space of one month neglect or refuse to approve or disapprove the said plans sections specifications and particulars he shall be deemed to have approved thereof and if the principal engineer shall disapprove the same or if the principal engineer and the surveyor shall fail to agree as to the said plans sections specifications and particulars the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject to the special provisions of this section) by arbitration under the provisions of this section and such portion of the said street work and all works necessary or incident to the construction thereof or affecting the said railway shall be constructed only according to such plans sections and specifications as shall be approved as aforesaid and under the superintendence (if given) and to the reasonable satisfaction of the principal engineer and at the costs charges and expenses in all respects of the Corporation :

- (3) The Corporation shall not except with the consent of the company themselves execute any of the works necessary for the taking down or rebuilding of the bridge carrying the said railway over Dixon Street nor shall they inter-

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fere with the railway over such bridge nor with the traffic on such railway but if such consent is withheld the company shall if required in writing by the Corporation forthwith take down and reconstruct the said bridge or make all such alterations therein as may be required by the Corporation in order to admit of the construction of the said street work to the reasonable satisfaction of the surveyor and in accordance with the plans sections specifications and particulars submitted and approved as aforesaid and with detailed drawings to be prepared by the principal engineer and reasonably approved by the surveyor :

- (4) If the work is carried out by the company as aforesaid the Corporation shall repay to the company all sums properly expended by them from time to time in or about the preparation of detailed drawings the construction and carrying out of the said works and upon the materials required for the same including all reasonable costs of any necessary inspectors and watchmen and of the preparation and settlement of any plans sections and specifications of such works and materials and if any such payments shall not be made by the Corporation within two months after demand the Corporation shall be liable to pay interest thereon at the rate of five per centum per annum from the date of such demand and the Corporation shall upon the completion of the works to be executed by the company also pay to them such a sum as shall be agreed between the company and the Corporation or determined by arbitration by way of composition for and in satisfaction of all claims by the company in respect of the additional expense of maintenance of the said bridge arising from any increase in length or alteration in the form of construction effected under the powers of this Act :
- (5) The new reconstructed or altered bridge and the materials therein shall be and remain the property of the company and shall be maintained by them as part of their railways and works

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but the road and footways under the bridge shall be formed and paved metalled or asphalted and channelled and flagged and maintained by and at the expense of the Corporation :

- (6) Before the Corporation commence the construction of the said street work any temporary works which may in the opinion of the principal engineer be reasonably necessary to ensure the stability of the said railway and property may and shall be carried out by the company for the Corporation and the costs thereof and any expenses incurred in connection therewith (including compensation payable to any workmen or the legal representatives or dependants of workmen who may be injured or killed whilst employed by the company exclusively in and about such works) shall be repaid by the Corporation to the company on demand :
- (7) If it shall at any time appear to the principal engineer either before or during the construction or within five years after the completion of the said street work and in consequence of such construction any further or other works or appliances or measures of precaution are required either by way of addition to the existing works of the company or in connection with the said street work or in relation to the method of construction of the said street work so as to prevent subsidence or injury happening to any of the railways and works or property of the company the Corporation shall on being thereunto required in writing under the hand of the principal engineer make and execute at their own expense and according to plans sections and specifications to be prepared by him and approved by the surveyor such works or to take such measures of precaution including the temporary cessation of the construction of the said street work as the principal engineer shall reasonably require and the construction of the said street work when commenced shall proceed without cessation except as aforesaid and with all reasonable despatch.

Any difference as to the necessity of any such further works as aforesaid or as to the mode of execution thereof shall be determined by arbitration under this section : A.D. 1925.
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- (8) Notwithstanding the approval of plans sections and specifications or supervision by or completion to the satisfaction of the principal engineer as aforesaid and notwithstanding the compliance by the Corporation with the provisions of this section if during and in consequence of the execution of the said street work the said railway of the company or any of the works connected therewith respectively or any property of that company shall be injured or damaged such injury or damage shall be forthwith made good by the company who may recover the amount reasonably expended in so doing from the Corporation :
- (9) The Corporation shall not in making the said street work in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the railway and property of the company or any traffic thereon and if at any time or times hereafter the free and uninterrupted and safe user of the railway of the company or any traffic thereon shall be obstructed hindered or interfered with contrary to this subsection the Corporation shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which that company may be put as well as reasonable compensation for the loss sustained by them by reason of any such interruption or interference :
- (10) The Corporation shall be responsible for and make good to the company all costs charges losses damages and expenses which may be occasioned to their railway works or property or to any person or persons using the same by reason of the construction alteration maintenance or failure of the said street work or of any act or omission of the Corporation or of any of the persons in their employ or of their contractors or others and the Corporation shall

A.D. 1925.
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effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction alteration maintenance failure or omission :

- (11) During the construction of the said street work and of any of the further works mentioned in this section the Corporation shall bear and on demand pay to the company the reasonable expense of the employment by them of a sufficient number of inspectors and watchmen to be appointed by them for inspecting the said railway and further works as aforesaid and for watching their railway and the works and conveniences connected therewith and their said lands or property for preventing as far as may be all interference obstruction danger and accident arising from any of the operations of the Corporation or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise and the Corporation shall at all times give facilities to the principal engineer and his assistants or inspectors for full and free access to the said street work during or after construction and shall also furnish him or them with such information as he or they may reasonably require with regard to such street work or the method of construction thereof :
- (12) If by reason of or during the construction of the said street work it shall become necessary in the opinion of the principal engineer to add to or alter any signal or signal apparatus on the railway of the company the same shall be so added to or altered by the company and any expense reasonably incurred by the company in so doing shall be repaid by the Corporation to the company :
- (13) If the company shall at any time after the construction of the said street work and under their existing powers desire to widen alter or extend their railway or any of the works or conveniences connected therewith the Corporation shall give to the company every reasonable facility (in so far as they lawfully can or may)

for the execution of such widening alteration or extension and any additional expense to which the company may reasonably be put in carrying out any such widening alteration or extension by reason of the construction of the said street work shall be repaid to them by the Corporation :

A.D. 1925.
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- (14) Except as in subsection (1) of this section otherwise provided if any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to and be determined on the application of either party after notice in writing to the other by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

41. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands in the borough delineated on the deposited plans and described in the deposited book of reference relating to land for slaughter-house purposes and numbered 1 to 5 inclusive on those plans and in that book of reference as they may require for the purpose of enlarging extending and improving the slaughter-houses of the Corporation and they may also enter on take and use such of the lands delineated on those plans and described in that book of reference relating to lands for police dwellings and thereon and therein numbered 1 to 6 inclusive as they may require for the erection of dwelling-houses for members of the police force of the Corporation.

Power
to take
lands for
slaughter-
houses and
police
dwellings.

42.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such

Further
powers for
acquisition
of lands.

A.D. 1925. lands or for the payment of any capital sum payable under a lease thereof Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or
- (b) in such other manner as may be approved by the Minister of Health.

Dwelling-houses for persons in Corporation's employment.

43.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

PART IV.

A.D. 1925.

ELECTRICITY.

44.—(1) Any generating stations and sub-stations of the Corporation outside the borough shall be exempt from the operation of any local Act or byelaw relating to the construction cubical extent height or position of or to open spaces about buildings or to temporary buildings.

Exemption
of generat-
ing and sub-
stations
of Corpora-
tion from
Building
Acts and
byelaws.

(2) Any generating stations or sub-stations to be constructed by the Corporation within any borough or urban district shall be constructed with due regard to the position thereof in relation to neighbouring buildings and to air spaces about the same and for the protection from fire and the Corporation shall comply with any reasonable requirements of the corporation of such borough or of the council of such urban district in reference to such matters and in the event of the Corporation not agreeing to any requirements of such corporation or district council under this section such difference shall be settled by arbitration under the Arbitration Act 1889.

45. The Corporation may in or under any street repairable by the inhabitants at large within their area of electricity supply for the time being and (with the consent of the persons liable to repair the same) in or under any street not so repairable or not dedicated to the public use within the same area and subject to the provisions of the Electricity (Supply) Acts 1882 to 1922 and the provisions with respect to the breaking up of streets railways and tramways contained in the Electric Lighting (Clauses) Act 1899 construct and maintain sub-stations transforming stations and other works in connection with the electricity undertaking and may in any such street as aforesaid provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that where in the opinion of the Corporation the consent of the person liable to repair any street not repairable by the inhabitants at large or not dedicated to the public use is unreasonably withheld the Corporation may appeal to a court of summary

Power to
construct
electrical
sub-stations
under
streets.

A.D. 1925. jurisdiction who shall have power to allow the construction and maintenance of such sub-stations transforming stations and works subject to such terms and conditions as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid. Provided also that the Corporation shall not construct any such sub-station transforming station or work (a) in or upon any bridge carrying a street over a railway or the approaches thereto or under any bridge carrying a railway over a street or within ten feet of any abutment of any such bridge or (b) in any street belonging to or repairable by a railway company and forming the approach to any station or depôt of such company or (c) so as to interfere with or render less convenient the access to or exit from any station or depôt of a railway company constructed and maintained under statutory authority except with the consent in writing of the railway company.

As to use of
electricity
supplied by
agreement.

46. If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement :

Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

Minimum
charges for
electricity.

47. The minimum charges per quarter which are specified in the Fourth Schedule to the Order of 1890 shall be paid to the Corporation by the occupier of any premises connected to a distributing main of the Corporation in respect of each quarter of any year during the whole or any part of which quarter such premises are so connected whether energy be supplied to such premises during the currency of such quarter or not.

As to
charges for
electric
fittings &c.

48. Any payment due to the Corporation for the sale or hire of lamps meters electric lines fittings apparatus and things for lighting and motive power or in

respect of the provision of materials or for executing works under the provisions of section 65 (Power to supply electric fittings) of the Act of 1899 may be recovered summarily as a civil debt. A.D. 1925.
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49. Any expenses reasonably incurred by the Corporation in reconnecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in like manner as expenses lawfully incurred by them in such cutting off or disconnecting. Power to recover charge for reconnection.

50.—(1) Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings &c.) of the Electric Lighting Act 1882 or that section as extended by section 16 of the Electric Lighting Act 1909 or from exercising the powers contained in those sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Further powers as to entry upon premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said sections or either of them are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry after affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

51.—(1) In the event of a meter of a construction and pattern approved by the Minister of Transport or the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. Period of error in defective meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be

A.D. 1925. recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Agreements
with Can-
nock Urban
District
Council.

52.—(1) The Corporation on the one hand and the Cannock Urban District Council (hereinafter called “the urban council”) on the other hand may enter into and carry into effect agreements or arrangements for mutual assistance of one by the other with regard to all or any of the following purposes :—

- (a) The supply by the Corporation to the urban council of electricity in bulk for the purposes of the electricity supply undertaking of the urban council and of any supply afforded or to be afforded by the urban council whether within or beyond the area of supply for the time being of the urban council;
- (b) The distribution and supply of electricity supplied by the Corporation;
- (c) The management and working of the electricity supply undertaking of the urban council or any part thereof;
- (d) The carrying out by the Corporation of any works in connection with the distribution or supply of electricity within the area of supply of the urban council or to any premises beyond that area to which the urban council may be authorised to afford a supply of electricity;
- (e) Any of the matters or things incidental to or connected with any of the purposes aforesaid.

(2) Any agreement or arrangement entered into under the provisions of this section shall be submitted to the Electricity Commissioners for their approval.

PART V.

PUBLIC BUILDINGS PARKS AND RECREATION GROUNDS.

Power to
provide
public
buildings
&c.

53. The Corporation may provide or acquire or may on any pleasure ground or (subject to the approval of the Minister of Health) on any lands of which for the time being they may be the owners erect and construct or allow to be erected and constructed and hold furnish equip maintain insure and carry on public halls pavilions

bandstands assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms reading-rooms shelters anterooms refreshment rooms kitchens cloak-rooms lavatories conveniences and appurtenances and may for any such purposes maintain alter adapt extend or otherwise deal with existing buildings for the time being belonging to the Corporation and may provide erect and maintain shops and offices as part of any such building or buildings.

A.D. 1925.

54.—(1) The Corporation may arrange for the provision or carrying on of suitable concerts entertainments exhibitions performances and amusements and for the sale of programmes and refreshments in the town hall or in any public buildings halls or rooms parks places of public resort recreation and pleasure grounds belonging to them and may make such reasonable charges as they may think fit for admission thereto and the Corporation may let any such premises as aforesaid for the purposes of such concerts entertainments exhibitions performances or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit or upon the like terms and conditions they may lease any such premises for any term not exceeding twenty-one years :

Provision
of enter-
tainments
and letting
of buildings.

Provided that any letting other than for a period of less than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable.

(2) All expenses incurred by the Corporation under the provisions of this section shall be paid out of the borough fund and borough rate and all moneys received by them thereunder shall be carried to the credit of the borough fund : Provided always that the net amount of any payments or contributions made by the Corporation under the provisions of this section after deducting any moneys received by them thereunder shall not in any one year exceed a sum equivalent to that which would be produced by a rate of one penny in the pound levied on property in the borough assessable in that year to the borough rate.

A.D. 1925.

Power to let
recreation
grounds &c.
to cricket
clubs &c.

55.—(1) The Corporation may purchase take on lease or acquire land for the purposes of athletic meetings cricket football and other games and for those purposes or any of them may lay out the whole or any portion of any land so purchased taken on lease or acquired or any portion of any park or place of public resort or recreation set apart by them under the provisions of the Wolverhampton Order 1900 and may from time to time let to any club company body or person the whole or any portion of such land or any portion of any park or place of public resort or recreation so set apart by the Corporation and may upon such lands or upon the portions of parks or places of public resort or recreation so set apart erect construct and maintain all proper and convenient houses pavilions dressing-rooms and other buildings works and conveniences and may exclude the public from such land or any portion of any park or place of public resort or recreation so let or set apart.

(2) Provided that nothing in this section shall empower the Corporation to let at one and the same time more than fifty per centum of the total area of the parks or places of public resort and recreation for the time being belonging to them and under their control.

Charge for
use of parts
of recrea-
tion grounds
&c. set apart
for certain
purposes.

56. When any portion of a public park or pleasure or recreation ground is set apart by the Corporation for any purpose under the provisions of the Wolverhampton Order 1900 and specially laid out and maintained for any such purpose the Corporation may charge reasonable sums for the use thereof for that purpose.

Power to
charge for
admission.

57. The Corporation may make such reasonable charges as they may think fit for admission to and for the use of any public building belonging to them or for the use of any buildings or enclosures in any of their parks recreation grounds or lands used for the purposes mentioned in this Part of this Act and they may also make such charge for the use of chairs and for admission to the public halls concert halls pavilions conservatories winter gardens assembly rooms reading rooms and conveniences in connection therewith as they may deem fit.

Power to
make bye-
laws.

58. The Corporation may make byelaws for securing good and orderly conduct during any concerts enter-

tainments exhibitions performances or amusements provided or carried on in pursuance of the provisions of this Part of this Act and for regulating the user of lands and buildings let by them under the provisions of the section of this Act of which the marginal note is "Power to let recreation grounds &c. to cricket clubs &c." and of buildings or enclosures in any of their parks recreation grounds or lands used for the purposes mentioned in this Part of this Act. A.D. 1925.
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59.—(1) The Corporation may appoint officers for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks places of public resort or recreation and pleasure grounds and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to
appoint
officers.

(2) Nothing in this section shall be deemed to render applicable to any such park-keeper the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

60. Any moneys received by the Corporation in connection with the execution of the purposes of this Part of this Act shall be carried to the credit of the borough fund and any expenses incurred by the Corporation in the execution of this Part of this Act shall be paid out of the borough fund and borough rate. As to
receipts and
expenses.

PART VI.

STREETS BUILDINGS STREAMS &c.

61.—(1) The Corporation may at any time after prescribing and defining the line of frontage of any street or road in pursuance of the power conferred upon them by section 9 (the marginal note of which is "Corporation may define future line of existing streets") of the Act of 1908 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such line of frontage at the date when the same was so prescribed or defined shall be pulled down set back or Further
powers as
to future
line of
street.

A.D. 1925. altered so that the same shall not project beyond or in front of such line of frontage.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Corporation under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to the owner lessee and tenant of any such building or erection and to any or either of them for any loss or damage sustained by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street or road and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Building
line in
streets.

62.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building

line") and the Corporation shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof. ° A.D. 1925.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the six weeks aforesaid without their approval nor beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition for their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

A.D. 1925.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Develop-
ment
scheme in
connection
with new
streets.

63.—(1) Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

(2) In this section the expression “lay out a new street” includes the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street.

Appeal to
court of
summary
jurisdiction.

64.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

Width of
new streets.

65.—(1) Whenever application shall be made to the Corporation to approve the formation of a new street on any estate or lands it shall be lawful for the Corporation to require that the new street shall be formed of such width as the Corporation shall require :

Provided that in the event of the Corporation requiring any new street to be of any greater width

than the following (hereinafter in this Act called "the prescribed width") namely— A.D. 1925.

(a) in the case of a new street which in the opinion of the Corporation will form a main thoroughfare or a continuation of a main thoroughfare or means of communication between main thoroughfares in the borough or a continuation of a main approach or means of communication between main approaches to the borough sixty feet; or

(b) in the case of any other new street the width required for such street by any Act or byelaw for the time being in force within the borough;

the Corporation shall purchase from the owner of such estate or lands and such owner shall sell to the Corporation any additional land necessary to make such new street of such greater width as aforesaid and shall also make compensation to such owner for any loss or damage sustained by him by reason of the Corporation requiring the street to be of such greater width as aforesaid.

(2) The compensation payable by the Corporation in respect of any such additional land as aforesaid shall in default of agreement be a sum equal to the pro rata proportion of the amount which shall at the date on which the Corporation require the new street to be of such greater width be the value of so much of the undeveloped land of the same owner as is or will be developed or improved by the intended works of street formation on the estate of which such additional land forms part.

(3) If by reason of the Corporation requiring any new street to be of any such greater width as aforesaid any land of any owner adjoining such new street will be or has become so reduced in area that it cannot having regard to the provisions of any Act or byelaw in force within the borough be used for building purposes and such owner shall within three months from the date of his receiving notice of such requirement give to the Corporation written notice so desiring the Corporation shall in lieu of paying such owner compensation as aforesaid purchase from such owner and such owner shall sell to the Corporation such reduced area of land and the compensation payable in respect of any such reduced area as aforesaid shall be the amount which shall be the

A.D. 1925. value thereof at the date on which the Corporation require the new street to be of such greater width.

(4) The amount of any compensation payable under this section and any difference thereunder as to whether any land has become so reduced in area as aforesaid shall in default of agreement be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 but in estimating the amount of any such compensation the benefit accruing to the property of which such additional land forms part by reason of the street being of such greater width shall be fairly estimated and set off against such compensation.

(5) Nothing contained in this section shall require an owner to incur any greater expense in the execution of any street works than he would have been required to incur if the new street had been of no greater width than the width required for such street under any byelaw for the time being in force within the borough and any additional expense incurred in the execution of street works by reason of the new street being of such greater width shall be borne by the Corporation.

Power to
license
bridges
over
streets.

66.—(1) The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting upon any street repairable by the inhabitants at large or any public highway a licence to construct and use a way (exclusive or otherwise) for himself his servants and agents at all times with or without trucks by means of a bridge over such street or highway for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given on such terms and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit Provided that—

(a) No fine rent or other sum of money (except a reasonable sum in respect of legal or other expenses incurred) shall be payable for or in respect of such licence;

(b) Any licence given under this section shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street or highway;

A.D. 1925.

(c) It shall be a condition of every such licence that the licensee shall at the request of the Corporation and at his own expense remove or alter such bridge in such manner as the Corporation require in the event of their considering such removal or alteration necessary or desirable in connection with the carrying out of improvements to such highway at any time and the decision of the Corporation that such removal or alteration is necessary or desirable shall be final and conclusive;

(d) In the event of the construction removal or alteration of any such bridge involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge shall for the purposes of the placing or maintenance of over-ground telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1924 be deemed part of the street or road which it crosses.

(2) If any person shall construct a bridge over any such street or highway without such licence or shall construct or use the same otherwise than in accordance with the terms and conditions of the licence or shall fail to remove or alter the same when required so to do under the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(3) In this section the expression "the owner" shall include the Corporation where they are the owners of any such premises as are mentioned in subsection (1) hereof.

67.—(1) It shall not be lawful for any person to fix or place any overhead rail beam pipe cable wire or other similar apparatus over across or along any street without the consent of the Corporation which consent the Corporation may give. Such consent shall be in writing under the hand of the town clerk and may contain such reasonable terms and conditions as the Corporation think fit.

Restriction
on placing
rails beams
&c. over
streets.

A.D. 1925.

(2) Any person acting in contravention of the provisions of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Nothing in this section shall extend to—

(a) any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of that Act apply;

(b) any apparatus belonging to the Postmaster-General;

(c) any apparatus lawfully fixed and placed for telegraphic telephonic wireless telegraphic and telephonic or railway signalling purposes or for railway working by electricity.

Street orderly bins.

68.—(1) The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of such dimensions and in such positions as the Corporation may from time to time determine.

(2) Provided that the Corporation shall not place or maintain any bin or receptacle in such a position as to interfere with or render less convenient the access to or exit from any station or depôt of a railway company nor except with the consent in writing of that company (which consent shall not be unreasonably withheld) on any bridge carrying any street or road over the railway or canal of such company.

(3) Section 12 (Street orderly bins) of the Act of 1908 is hereby repealed.

Police telephone call boxes and fire alarms.

69. The Corporation may (a) erect or fix police telephone call boxes and street fire alarms in such positions in any street road or public place within the borough as they think fit (b) with the consent of the road authority and with the consent and at the cost of the local authority (which cost the local authority are hereby authorised to incur) erect or fix street fire alarms in such positions as may be agreed in any street road or public place in the district of any local authority with whom the Corporation have entered into an agreement

for the use of their fire brigade Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1925.
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70.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering suspended across or hung over any street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or a danger or an injury to the amenities of the borough they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period not being less than seven days as may be specified in the notice. Banners and signs over streets.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the fifteenth day of November nineteen hundred and twenty-four.

71. Where premises abutting upon any street are so situate that surface water from such premises flows on to or over the footpath of such street the owner of such premises shall within fourteen days after service of a notice by the Corporation for that purpose execute such works as may be reasonably practicable to prevent the water from such premises from flowing over the footpath and in default of compliance with such notice within the period aforesaid such owner shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. For preventing water flowing on footpaths.

72.—(1) For the purpose of facilitating traffic by removing obstructions to view the Corporation may give notice to the owner of any land situate at or within a distance of ten yards from the corner of any street or at or near any bend in any street prescribing the height of fences hoardings boundary walls hedges trees and Height of fences and hedges at street corners.

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shrubs at such corner or within such distance from the corner or bend as may be prescribed in the notice and thereupon the following provisions shall have effect:—

(a) Unless such notice is withdrawn by the Corporation no person shall erect a fence hoarding or wall or permit a hedge tree or shrub to grow at a greater height than that prescribed contrary to the requirements of the notice;

(b) If required by the Corporation the owner of such land shall reduce the height of any fence hoarding wall hedge tree or shrub which exceeds that prescribed by the notice to a height not exceeding that so prescribed.

(2) Any person who contravenes the provisions of paragraph (a) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may reduce the height of such fence hoarding wall hedge tree or shrub to the height prescribed by them and the expense incurred by the Corporation shall be repaid to them by the owner of the land.

(3) If any person for the period of one month after the service of a notice upon him by the Corporation of a requirement under paragraph (b) of subsection (1) of this section fails to comply therewith the Corporation may themselves carry out the requisition of their notice.

(4) The Corporation shall make compensation to the owner or other persons interested in any land for any loss or damage which he or they may sustain in consequence of the giving of any notice under this section but such compensation shall not include the expenses incurred by the Corporation and to be repaid to them under subsection (2) of this section and no compensation shall be paid a second time in consequence of the growth of any hedge tree or shrub above the height prescribed in the notice. The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(5) Any person aggrieved by any notice given by the Corporation under this section may appeal to a court of summary jurisdiction within one month after the service of such notice provided he gives written notice of such

appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section. A.D. 1925.

(6) The owner of the land shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any notice of the Corporation under this section.

73.—(1) (a) No fence hoarding or other similar structure (in this section referred to as “structure”) of a greater height than six feet six inches shall be erected or brought forward on any land in any street— As to
hoardings
and similar
structures.

- (i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any local Act in force; or
- (ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 12 of the Housing &c. Act 1923; or
- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

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(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

As to
repair of
hoardings;

74. The Corporation may by notice in writing require the owner of or other person using any hoarding to maintain the same in good order and condition and if any paper or other material affixed thereto for advertising purposes becomes detached shall forthwith remove and clear away such paper or other material and if any owner shall neglect or refuse to comply with any such notice the Corporation may carry out the requirements thereof and recover from the owner any expense incurred by them in so doing.

Restric-
tions on
advertise-
ment
hoardings.

75.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful to erect any hoarding or similar structure in or abutting on or adjoining any street to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(2) The owner or other person using any hoarding wall or similar structure for advertising purposes whether erected before or after the commencement of this Act shall at all times keep and maintain the same in proper and safe repair and condition and if any papers affixed for advertising purposes to such hoarding wall or similar

structure fall away become detached or are stripped off A.D. 1925.
shall forthwith remove and clear away such papers. —

(3) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) Provided that a person shall not be liable to any such penalty in respect of an offence under subsection (3) of this section unless he shall have failed to comply with a notice in writing from the Corporation requiring him to keep or maintain a hoarding wall or structure of which he is the owner or user in proper and safe repair and condition or to remove and clear away paper in accordance with the provisions of that subsection.

(5) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

76.—(1) All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the door or entrance or the building wall or fence in a line and the elevation of the building wall or fence fronting to or towards the street in accordance with a drawing approved by the Corporation and in case the Corporation for a space of four weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof.

Elevation
of buildings
erected on
front lands
to require
approval.

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(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

(4) Section 37 (Elevation of buildings erected on front land to be subject to approval of Corporation) of the Act of 1869 is hereby repealed.

Removal of
dilapidated
and
neglected
buildings.

77.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may order the owner at his option either to take down or to repair such building (in this section referred to as a “neglected structure”) or any part thereof or otherwise put the same or any part thereof into a state of repair and good condition to the satisfaction of the Corporation within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed the Corporation may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the Corporation in the execution of any such order under the provisions of subsection (2) of this section take down a neglected structure or any part thereof the Corporation may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said

expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs. A.D. 1925.

78.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto. Means of escape from buildings in case of fire.

(2) From and after the first day of January nineteen hundred and twenty-six the Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided if in their opinion such building is not provided with proper and sufficient means of escape from each storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

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(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the said means of escape as may be reasonably necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under either of the said subsections.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) If the owner alleges that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and thereupon the county court after hearing the occupier may make such order as appears to the court just and equitable under all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(8) This section shall not apply to any premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 apply.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not

exceeding five pounds and to a daily penalty not exceeding
forty shillings.

79.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) (a) Every dwelling-house the erection of which was commenced before the passing of this Act shall where reasonably practicable be provided with a sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any owner aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(3) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

80.—(1) Every dwelling-house erected after the Sink &c. passing of this Act shall be provided with a sufficient sink to be and with sufficient accommodation for washing clothing provided. and any owner who shall occupy or allow to be occupied

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any dwelling-house not so provided shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(2) (a) Every dwelling-house the erection of which was commenced before the passing of this Act shall where reasonably practicable be provided with a sufficient sink and with sufficient accommodation for washing clothing and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(b) Any owner aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

Further
provisions
as to
sanitary
conve-
niences
used in
common.

81.—(1) The owner of any sanitary convenience used in common by the occupiers of two or more separate dwelling-houses or by other persons shall cause to be affixed to the door or walls of each of such sanitary conveniences a notice identifying the dwelling-houses the occupiers of which are entitled to use the same or identifying the persons entitled to use the same.

(2) The owner of two or more sanitary conveniences (not being part of a dwelling-house but used by the occupiers of two or more dwelling-houses) shall so far as

reasonably practicable allot such sanitary conveniences to the occupiers of particular dwelling-houses so as to insure that the same are allocated proportionately (as nearly as may be) amongst such dwelling-houses. A.D. 1925.

(3) Any owner who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

82.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt. As to defective drains &c.

(2) Upon any proceedings under this section the court may inquire whether any requirements contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

83. Section 62 (Local authority may require houses to be supplied with water in certain cases) of the Public Health Act 1875 shall be read and have effect as if the words “or the medical officer of health” were inserted therein after the words “the surveyor.” Amendment of section 62 of Public Health Act 1875.

84.—(1) It shall not be lawful to culvert cover over stop up obstruct or divert any stream or watercourse except in accordance with plans and sections to be submitted to and approved by the Corporation such approval not to be unreasonably withheld or delayed and any person acting in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings: Streams not to be covered over obstructed or diverted except in accordance with plans.

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Provided that—

- (a) No requirement of the Corporation in relation to such plans and sections shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;
- (b) If with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed under this section such difference shall be referred to arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) Nothing in this section contained shall apply to any culvert or covering constructed or to be constructed by a railway company under any Act of Parliament but before constructing any such culvert or covering the railway company shall give to the Corporation information of the works proposed to be constructed.

For cleans-
ing &c.
streams.

85.—(1) The Corporation may from time to time cleanse improve and scour as they think fit the waterway or bed and course or any part or parts thereof respectively of any stream brook or watercourse within the borough or of so much as is within or adjoining the borough of any stream which forms the boundary of the borough and may also by such ways and means as they may find most effectual disinfect and purify the same and the waters thereof and shall make compensation to the owners lessees and occupiers of all or any parts of the said streams brooks or watercourses who may be injured by such cleansing improving scouring disinfecting or purifying such compensation in case of difference to be settled in a summary way before two justices and all expenses incurred by the Corporation including compensation payable by

them under this section may be paid out of the borough fund or borough rate. A.D. 1925.

(2) The powers of this section shall not be exercised so as to injure any railway of a railway company or the foundations or piers of any bridge forming part of such railway without the consent of such company. Any difference arising between the Corporation and the said company under this section shall be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other.

86.—(1) No person shall within the borough cast or deposit or cause to be cast or deposited any stone gravel soil refuse or other solid matter whatsoever (in this section referred to as “solid matter”) into any streams so as to tend either directly or in combination with similar acts of the same or other persons to impede the proper flow of water in the said streams. Prohibiting
throwing of
refuse &c.
into
streams.

Any person offending against the provisions of this subsection shall for every such offence be liable to a penalty not exceeding five pounds.

(2) If any person shall cast or deposit or cause to be cast or deposited any solid matter upon the bank or banks of the said streams in such position as to render it reasonably probable that the same may fall or be washed into such streams the Corporation may serve notice upon such person requiring him to remove the same or to comply with such conditions as the Corporation may prescribe in order to prevent the matter falling or being washed into the streams and in default of compliance with the requirements of such notice within one month from the service thereof the Corporation shall cause such person to be summoned before a court of summary jurisdiction to show cause why such requirement should not be complied with and upon the Corporation satisfying the court that it is reasonably probable that such matter may fall or be washed into the stream the court may order such person to remove the same or to comply with all or any of the requirements of the notice within a time to be specified in the order not exceeding one month from the date thereof and to pay to the Corporation their reasonable costs in the matter to be ascertained by the court and

A.D. 1925. specified in the order and if such person disobey such order he shall for every such offence be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings and the Corporation may on such default if they think fit (without prejudice to any such penalties) do the work required by the order and recover the expenses thereof from the person in default.

(3) For the purposes of this section particles of matter in suspension in water arising from coal washing or coke cooling shall not be deemed to be solid matter provided that the best practicable and reasonably available means of removing such matter have been used.

(4) The provisions of this section shall be in addition to and may be enforced by the Corporation independently of the provisions of the Rivers Pollution Prevention Act 1876 and of section 47 of the Public Health Acts Amendment Act 1890.

Restric-
tions as to
buildings
&c. over
streams.

87.—(1) Except in the exercise of statutory powers in that behalf no person shall at any time hereafter erect construct or place or cause or permit to be erected constructed or placed in or directly over the waterway or bed of any stream any building structure erection bridge arch culvert pipe or other work or thing (in this section referred to collectively as “works” or “work”) which will or may have the effect of reducing the waterway or bed of such stream or of interfering with the free passage of water along such stream or reconstruct or alter any work erected constructed or placed in or directly over the waterway or bed of any stream before or after the commencement of this Act in such manner that such reconstruction or alteration will have any such effect except in each case in accordance with plans sections and particulars previously approved by the Corporation or by an arbitrator appointed as in this section provided.

(2) If the Corporation shall not within six weeks after the delivery of the plans sections and particulars signify in writing their approval or disapproval of any intended work or of the reconstruction or alteration of any existing work as the case may be to the person having delivered such plans sections and particulars with in the case of disapproval their reasons for such disapproval they shall be deemed to have approved the said plans sections and particulars.

(3) The Corporation may attach to their approval any condition which they may deem proper. A.D. 1925. —

(4) If the Corporation disapprove of the plans sections and particulars or if any difference shall arise as to the reasonableness of any condition which the Corporation may attach to their approval the plans sections and particulars or any such difference shall be referred to an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the person on whose behalf the plans sections and particulars were submitted or of the Corporation and any such arbitrator shall determine such difference and may approve the said plans sections and particulars with or without modifications or disapprove the same as he shall determine.

(5) If any such work or the reconstruction or alteration of any such existing work is commenced or completed without such approval of the Corporation or of an arbitrator as is required by this section or in any respect otherwise than in conformity therewith or with any condition attached to such approval the person who commenced or completed the same or caused or permitted the same to be commenced or completed shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings and on conviction of any person under this section the court may make such order with regard to the removal reinstatement or modification of the work as in the circumstances of the case the court may think fit and in default of compliance with such order by the person to whom the same is directed the Corporation may (without prejudice to the liability to any such penalties or to any other remedy or proceeding) cause such work to be pulled down and removed or reinstated as the case may be and any expense incurred by them in or about the pulling down and removal or reinstatement of the work may be recovered from the person to whom the said order of the court is directed.

(6) Nothing in this section contained shall be deemed to affect the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1924.

88.—(1) If any watercourse or ditch situate upon any land laid out for building or on which any such land abuts requires in the opinion of the Corporation to be Power to require culverting of water-

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courses on
building
land.

wholly or partially filled up or covered over the Corporation may by notice in writing require the owner or owners of such land to substitute for such watercourse or ditch a pipe drain or culvert with all necessary gullies pipes and means of conveying surface water thereinto:

Provided that nothing in this section shall authorise the Corporation to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building.

(2) Any person who fails to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Saving for
railway
companies.

89. Nothing in this Part of this Act except the sections whereof the marginal notes are:—

Restriction on placing rails beams &c. over streets;

Banners and signs over streets;

For preventing water flowing on footpaths;

As to hoardings and similar structures;

As to repair of hoardings;

Restrictions on advertisement hoardings; and

Removal of dilapidated and neglected buildings;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or lands are used or held by such company primarily for railway purposes.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Restriction
on attend-
ance of
children at
Sunday
schools and

90.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the

spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

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—
places of
assembly
when
infectious
disease
prevails.

(2) No person being the parent or having the care or charge of a child who is suffering from pulmonary tuberculosis and who has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school in the borough without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating pulmonary tuberculosis to others.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

91.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the borough require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

Power to
close
Sunday
schools to
prevent
spread of
disease &c.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

92.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer or the deputy

Penalty on
withholding
information
from
medical
officer.

A.D. 1925.

or assistant medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer or the deputy or assistant medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Extended meaning of "infectious disease" for certain purposes.

93. For the purposes of the preceding sections of this Part of this Act the expression "infectious disease" includes measles German measles scabies whooping cough ringworm chicken-pox and influenza.

For preventing contact with body of person who has died of infectious disease.

94. Any person who being in charge of the body of any person who has died from any infectious disease shall permit or allow any other person unnecessarily to come into contact with such body shall be liable to a penalty not exceeding five pounds.

Removal of body of person who has died of infectious disease.

95. When any person suffering from infectious disease shall die of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such case it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Prohibition on infected person carrying on business.

96. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption

by persons other than himself or members of his household or knowingly carries on any trade or business connected with food in such a manner as to be likely to spread the infectious disease he shall be liable to a fine not exceeding forty shillings. A.D. 1925.
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97. Whenever the medical officer shall report in writing to the Corporation or to a committee of the council that there is a prevalence of infectious disease in the borough or in any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say) :—

Medical inspection of inmates of common lodging-houses &c. when infectious disease prevails.

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the infectious disease named in the resolution of the Corporation or such committee as aforesaid may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a registered common lodging-house in the borough and to the Minister of Health :

A.D. 1925.
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(3) Unless approved by the Minister of Health any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Minister of Health :

(4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

Power to
close
infectious
common
lodging-
houses.

98.—(1) If the Corporation deem it necessary on account of the existence or recent existence therein of infectious disease to close a common lodging-house they may make an application to a justice for an order to close the same and the justice if satisfied of the necessity of such closing may make an order for the closing of such house until the same shall have been disinfected to the satisfaction of and certified to be free from infection by the medical officer and any keeper of a common lodging-house who shall receive any lodger or suffer or permit any lodger to remain in such house after an order has been made to close the same and during the continuance of such order shall be liable to a penalty of five pounds for every day during which the offence continues.

(2) The Corporation shall make compensation to the keeper of any such lodging-house for any loss he may sustain by reason of such closing.

Names of
laundrymen
to be
furnished.

99.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who offends against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

100.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the borough—

A.D. 1925.
 —
 For regulat-
 ing manu-
 facture and
 sale of
 ice-cream
 &c.

- (a) causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or
- (b) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed. Provided that no compensation shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises after such seizure and while any such person is suffering from infectious disease.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle

A.D. 1925. or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow or stand in or on which the same are offered for sale as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or refusing inspection of the materials or commodities or articles of food therein or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds.

(5) Section 63 (For regulating manufacture and sale of ice-cream &c.) of the Act of 1904 is hereby repealed.

Removal
of person
suffering
from
pulmonary
tubercu-
losis to
hospital.

101.—(1) If the medical officer certifies in writing (a) that any person is suffering from pulmonary tuberculosis and is in an infectious state and (b) that by reason of the lodging or accommodation with which such person is provided being such that proper precautions to prevent the spread of infection cannot be taken or by reason of such precautions not being taken serious risk of infection is caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person so suffering the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a registered medical practitioner to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough for the detention and maintenance of such persons therein subject to the consent of the superintending body of such hospital or place and subject to the

like consent for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section. A.D. 1925.
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(2) The medical officer shall give to the person so suffering or some person having the charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) (i) Where—

(a) any person suffering as aforesaid is removed to any such hospital or place as aforesaid under an order made under this section; or

(b) any person resident in the borough and suffering as aforesaid voluntarily goes for treatment to any hospital or place for the reception of the sick;

the Corporation may if they think fit and if satisfied that the necessities of the case so require make payments for or towards the maintenance of any relative of or person actually dependent on the person so suffering.

(ii) On the hearing of any application under this section the court shall take into consideration the amount necessary for such maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependants.

(4) An order under this section may be addressed to any constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is

A.D. 1925. right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

Disinfection
in case of
tuber-
culosis.

102.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within a time to be fixed in the notice.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty

not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. A.D. 1925.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the negligent exercise by the Corporation of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

103.—(1) The following provisions shall apply to any room shop or other part of a building in which food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale :—

Sanitary
regula-
tions for
premises
where food
is deposited
for sale.

- (a) Any such room or shop shall be properly ventilated to the reasonable satisfaction of the medical officer;
- (b) No urinal water-closet earth-closet privy ashpit or other like sanitary convenience shall be within such room shop or other part of a building or shall communicate therewith except through the open air or through an intervening ventilated space;
- (c) No cistern for supplying water to such room shop or other part of a building shall be in direct communication with and directly discharge into any such sanitary convenience;

A.D. 1925.
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- (d) No drain or pipe for carrying off faecal or sewage matter shall have any inlet or opening within such room shop or other part of a building;
- (e) No such room shop or other part of a building shall be used as a sleeping place and so far as may be reasonably necessary to prevent risk of the infection or contamination of any such article as aforesaid no sleeping place shall adjoin such room shop or other part of a building and communicate therewith except through the open air or through an intervening ventilated space;
- (f) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of a building except so far as may be reasonably necessary for the proper carrying on of trade or business;
- (g) Due cleanliness shall be observed in regard to such room shop or other part of a building and all articles apparatus and utensils therein and shall be observed by persons engaged in such room shop or other part of a building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of the provisions of this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

(5) The word "food" in this section shall include every article used for food or drink by man other than drugs or water and any article which ordinarily enters into or is used in the composition or preparation of human food and shall also include flavouring matters and condiments.

A.D. 1925.
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104.—(1) In any case in which samples of milk are taken by the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer under the provisions of section 69 (Power to inspect cows and to take samples of milk) of the Act of 1904 the owner of the cow from which such samples are taken shall give immediate notice in writing to the local authority of the district in which the dairy at which the sample was taken is situate of any sale disposal or removal of such cow during a period of six weeks next succeeding the date upon which such sample was taken.

Amend-
ment of
section 69
of Act
of 1904.

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) Any penalties under this section may be recovered by the Corporation before a court of summary jurisdiction having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

105.—(1) Any premises used or proposed to be used for the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid.

Registra-
tion of
premises
used for
preparation
of potted
and pre-
served
foods.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

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Entry on
premises
used for
storage of
food.

106.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have power to enter the premises of any vendor of or merchant or dealer in any article intended for food or any premises where any such article is for the purposes of sale deposited or stored or is in preparation for sale for the purpose of inspecting such premises and the materials or commodities or articles of food therein.

(2) On any such inspection the said officer of the Corporation shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the agent of such person his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the analyst.

(3) The expression “ public analyst ” in this section means the analyst appointed by the Corporation for the purposes of the Sale of Food and Drugs Acts 1875 to 1907.

Further
powers in
relation to
unsound
food.

107. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any article of food intended for sale or in the course of delivery after sale for the food of man and the provisions of such sections shall apply accordingly.

As to
contamina-
tion of
sausages
and other
foods.

108.—(1) Any person who in the manufacture storage or preparation for sale of sausages pressed or pickled meat or other similar commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution

for the due protection of such commodity from infection or contamination shall be liable for every such offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. A.D. 1925.
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(2) No person shall be convicted of an offence under this section unless before the commission of the offence with which he is charged he shall have had written notice that such an act or thing as the one complained of is an offence against this section.

109. The Corporation may from time to time make byelaws for securing the cleanliness and protection from contamination of food while being conveyed through or along any street: Byelaws
as to
conveyance
of food in
streets.

Provided that before making any such byelaw applicable to the transport of any article by any railway company or to or from any railway station or depôt of such company the Corporation shall give not less than one month's notice to the company affected of the Corporation's intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and such company shall be entitled to make representations to the Minister of Health with regard thereto.

110.—(1) If any squatter or gipsy or other person dwelling in a tent or van or other similar structure occupies land within three hundred yards of any dwelling-house and the occupation of such land by him is a nuisance or injurious to health a court of summary jurisdiction may on complaint by the Corporation make an order prohibiting (either absolutely or subject to conditions) the further occupation of such land or any other land within a radius of one thousand yards thereof by such squatter gipsy or other person and if the order be not complied with the squatter gipsy or other person shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Power to
prohibit
tents vans
&c.

(2) The Corporation before making any complaint shall give to the owner or lessee of the land so occupied or to the person who has suffered the land to be so occupied not less than seven days' notice in writing of their intention so to complain and shall at the same time give a similar notice to the squatter gipsy or other

A.D. 1925. — person with regard to whom the complaint is intended to be made.

(3) This section shall not apply to any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder (not being a pedlar or hawker).

Public
notice to be
given of
foregoing
provisions
of this Part
of Act.

111. Public notice of the effect of the foregoing provisions of this Part of this Act shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two successive weeks in a newspaper published or circulating in the borough and by a notice affixed outside the town hall.

Con-
version of
existing
accom-
modation
into water-
closets.

112.—(1) When a sewer and water supply sufficient for the purpose are reasonably available the Corporation may require any existing waste-water closet accommodation provided at or in connection with any building to be altered so as to be converted into a fresh-water closet which shall comply with the byelaws for the time being in force and shall communicate with a sewer.

(2) If the owner of any such building fail in any respect to comply with a notice from the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner such part of the expenses incurred by the Corporation in so doing as they may recover under the provisions of subsection (3) of this section.

(3) The Corporation shall bear and pay the cost of providing the pedestal cistern and fittings and the remainder of the expenses shall be borne by the owner.

(4) The notice under this section shall state the effect of the provisions of this section.

Byelaws as
to stables.

113. The Corporation may make byelaws for securing the proper ventilation and lighting of and for the prevention of insanitary conditions (a) in or about or arising out of any existing stable (whether the same is used as such at the passing of this Act or not) or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

114.—(1) From and after such date as the Corporation may by resolution determine it shall not be lawful for the owner or occupier of any premises within the borough to use any ashpit for the deposit of ashes or other refuse provided that the Corporation shall provide and maintain for the deposit of such refuse such dustbin or dustbins as they may consider necessary in accordance with and subject to the provisions of the next succeeding section of this Act.

A.D. 1925.

As to
ashpits.

(2) Any ashpits existing at the date of this Act shall if required by the Corporation and to their reasonable approval be converted by the owner of the premises upon which the same exists into a receptacle in which the dustbin or dustbins provided by the Corporation in respect of such premises in pursuance of the provisions of subsection (1) of this section shall be placed and the reasonable cost of such conversion shall be repaid to the owner by the Corporation.

115.—(1) The Corporation may by resolution determine to purchase from the owners thereof all dustbins in use within the borough and in the event of the Corporation so determining they shall forthwith acquire all such dustbins and shall pay the owners of such dustbins the value thereof as on the day of purchase such value to be determined failing agreement by two justices.

As to
dustbins.

(2) In any case in which the Corporation are authorised to require the owner or occupier of any premises to provide an ashpit or a dustbin the Corporation may themselves provide a dustbin.

(3) In the event of the Corporation purchasing the dustbins referred to in subsection (1) of this section or in the event of their providing dustbins under the last preceding section or under subsection (2) hereof they shall thereafter maintain the same in good order and condition and shall renew the same when necessary.

(4) The person who pays the water-rent or charges in respect of any premises in respect of which the dustbin is maintained by the Corporation under the provisions of this section shall pay to the Corporation annually such sum not exceeding three shillings as the Corporation may determine and any sum due to the Corporation under the provisions of this section from any such person may be collected with the water-rent or charges

A.D. 1925. in respect thereof and may (without prejudice to any other method of recovery) be recovered in the same manner as that rent or those charges.

(5) The Corporation may also recover any sum due to them under this section in respect of any premises from the occupier of those premises and such occupier may (in cases where any sum so recovered by the Corporation is payable by the owner of the premises under the foregoing provisions of this section) deduct any sum so paid by him from the amount of rent payable by him to the owner thereof.

(6) The Corporation shall pay all moneys received by them for the purposes of this section into the borough fund and shall pay all expenses incurred by them thereunder (other than the cost of the acquisition of existing dustbins under the provisions of subsection (1) thereof) out of the borough fund and the Corporation shall keep accounts of all such receipts and expenses. Such accounts shall be divided into a capital account and a revenue account.

(7) There shall be included in the capital account all sums of money raised by loan for the purchase of dustbins under the provisions of subsection (1) of this section and the amount of any such loan shall be reduced by instalments transferred from the revenue account over a period of five years so that at the end of such period the amount of such loan shall be extinguished.

(8) The following expenses shall be debited to the said revenue account namely :—

- (a) All instalments carried to the capital account under the provisions of the last preceding subsection of this section;
- (b) Interest for the time being payable on any sums of money borrowed by the Corporation for the purposes of this section;
- (c) The cost incurred by the Corporation in respect of renewal or maintenance of dustbins;
- (d) Such other working expenses as may from time to time be incurred by the Corporation in carrying out their powers and duties under this section.

(9) There shall be carried to the credit of the revenue account the following namely :— A.D. 1925.

- (a) All sums of money paid to the Corporation under the provisions of subsection (4) of this section ;
- (b) Such other moneys of a revenue nature as may from time to time be received by the Corporation under this section.

(10) The revenue account shall be kept so as to secure that (as far as may be reasonably practicable) taking one year with another the receipts of the Corporation under this section shall meet the expenses incurred by them thereunder and any balance standing to the credit or debit of the revenue account shall be carried forward and taken into account by the Corporation in fixing the charges to be made by them under the provisions of subsection (4) of this section.

116.—(1) It shall not be lawful for any person to use any ashpit or dustbin for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation. Restriction
as to use
of dustbins.

(2) Any person contravening the provisions of this section shall be liable to a penalty not exceeding ten shillings.

117. Nothing in the three preceding sections of this Act shall apply to any premises ashpits or dustbins belonging to a railway company and situate upon lands forming part of their railway stations or depôts. Saving as
to railway
companies.

118.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act and in the opinion of the Corporation it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to Discon-
tinuance
of offensive
trade.

A.D. 1925. — cease to use such premises for the carrying on of such offensive trade :

Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is " As to appeals " and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection.

(2) Any person who fails or neglects to comply with any requirement of the Corporation under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay compensation to such person for any loss sustained by him in consequence of the action of the Corporation. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

Defining
 establish-
 ment of a
 new busi-
 ness for
 purposes of
 section 112
 of Public
 Health
 Act 1875.

119.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if without the consent in writing of the Corporation—

- (a) it is removed from one set of premises to any other premises ; or
- (b) it is renewed on the same set of premises after having been discontinued for a period of six months or upwards ; or
- (c) any premises on which it is for the time being carried on are enlarged ;

but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership or tenancy of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area. A.D. 1925.
—

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on such offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

120.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who does not consent to leave the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where a court of summary jurisdiction on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the condition of any order satisfied without charge to the person removed or to the parent or guardian of that person. Cleansing of
verminous
persons.

A.D. 1925.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such court shall cease his employment in order to comply with such order the Corporation may and in case of an order of the court shall make compensation to him for any loss he may suffer thereby.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation.

(6) This section shall not apply to any child.

Cleansing of
children
and their
clothing.

121.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may examine the person and clothing of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice.

(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within the prescribed time he shall be liable to a penalty not exceeding ten shillings and the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall be liable to a penalty not exceeding ten shillings. A.D. 1925.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence.

In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of such child whose person or clothing requires to be cleansed.

122.—(1) If the medical officer or the sanitary inspector has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin. Houses infested with vermin to be cleansed

(2) Where on the certificate of the medical officer or sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified

A.D. 1925. he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river canal or other water within the borough and used for the like purpose.

As to filthy premises.

123.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation is satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order

to do act other than a payment of money) of the A.D. 1925.
Summary Jurisdiction Act 1879. —

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

PART VIII.

POLICE PROVISIONS.

124.—(1) Any person brought before any court of summary jurisdiction charged with having in his possession anything which there is reasonable ground to believe or suspect has been stolen and who does not account to the satisfaction of the court for his possession of the same shall be liable to a penalty not exceeding five pounds or in the discretion of the court to imprisonment for any term not exceeding two months with or without hard labour. Penalty on persons having property suspected to have been stolen.

(2) If any person so brought before any court shall declare that he received such thing from some other person or that he was employed as a carrier agent or servant to convey the same for some other person such court shall cause such other person and also if necessary every former or pretended purchaser or other person through whose possession the same shall have passed to be brought before a court and examined.

(3) Any person who shall have had possession of such thing and had reasonable cause to believe or suspect the same to have been stolen and who does not account to the satisfaction of the court for the possession of the same shall be liable to a penalty not exceeding five pounds or in the discretion of the court to imprisonment for any term not exceeding three months with or without hard labour.

(4) If information shall be given on oath to any court that there is reasonable cause for suspecting that anything stolen is concealed or lodged in any house or in any other place it shall be lawful for such court by warrant to cause such house or place to be entered and searched by day or by night and to authorise the use of force for effecting an entry to seek and carry away any such thing and to take into custody and bring before a court every person found in such house or place who

A.D. 1925. shall appear to have been privy to the deposit of any such thing knowing or having reasonable cause to suspect the same to have been stolen.

(5) For the purposes of this section—

The expression “ thing ” includes money ;

The expression “ stolen ” means stolen or unlawfully acquired or detained ;

The expression “ possession ” means possession custody or control in any premises or otherwise or conveying in any manner and the possession of a carrier agent or servant shall (in addition to such possession) be deemed to be the possession of the person who shall have employed such carrier agent or servant.

As to
public
meetings
&c.

125. The Corporation may permit any market place or any land used for the purpose of any market or cattle market and any open land belonging to them adjoining thereto to be used for public meetings public services public speaking and public lectures and they may make regulations with respect to the purposes of such use and as to the conduct of persons resorting thereto.

Notice of
processions
to be given.

126.—(1) Any person or persons intending to organise or form a public or ceremonial procession or a circus procession or procession of wild animals through the streets of the borough (other than processions which are periodically organised or formed by the Salvation Army) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the head police office twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

As to
control of
traffic by
police.

127. Where any police constable in uniform is stationed at any crossing in any street of the borough for the direction of traffic thereat any person driving or propelling any vehicle who shall at such crossing

wilfully neglect or refuse to make such vehicle stop, proceed or keep to a particular line of traffic when directed so to do by such police constable in the execution of his duty shall be liable in respect of each offence to a penalty not exceeding forty shillings or in the case of a second or subsequent conviction to a penalty not exceeding five pounds. A.D. 1925.

128.—(1) It shall be lawful for the Corporation at all times of public processions rejoicings or illuminations or on other emergencies to cause barricades to be erected across any of the streets of the borough and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings. As to barriers in streets.

(2) For the purpose of the erection of such barriers the Corporation may construct or place in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

PART IX.

RATING.

(1) *Relating to Wolverhampton Union.*

129.—(1) A new valuation list shall be made for every parish or township in the union by the overseers of each such parish or township so as to come into force on the first day of April nineteen hundred and twenty-six and a second new valuation list shall be so made so as to come into force for every such parish or township on the first day of April in the year nineteen hundred and thirty-one and thereafter new valuation lists shall be made from time to time so that the interval between the dates on which one new valuation list and the next succeeding new valuation list respectively come into force shall be a period of five years. Making of valuation lists.

(2) Every new valuation list shall come into force on the first day of April next following the date on which it is finally approved by the assessment committee and shall (subject to the provisions of this Part of this Act and subject to any provisions with respect to the alteration of and the making of additions to the valuation lists which are in operation at the date of this Act and

A.D. 1925. — are not repealed thereby) remain in force until it is superseded by a new valuation list.

(3) Subject to the provisions of the Agricultural Rates Order 1896 and of the Wolverhampton (Rates) Order 1922 every such new valuation list shall be in the form set out in the schedule to the Union Assessment Committee Act 1862.

(4) Any failure on the part of the overseers of any parish or township to carry out the duties imposed upon them by subsection (1) of this section with respect to the preparation of any new valuation list within the time required by that section or the omission from a valuation list of any matters required to be included therein shall not of itself render the list invalid.

Overseers
may
require
returns.

130.—(1) The assessment committee or the overseers of any parish or township in the union may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in any parish or township in the union (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Second Schedule to this Act and containing the particulars therein mentioned or referred to :

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the assessment committee or the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after receipt of such notice as

aforesaid shall be liable on summary conviction to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds. A.D. 1925.

(3) The overseers of any parish or township in the union shall whenever required by the assessment committee produce from time to time to such committee returns or any of them obtained by such overseers under the provisions of this section.

(4) In this section the expression "owner" has the meaning assigned to it by section 20 of the Poor Rate Assessment and Collection Act 1869.

(5) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations or any hereditament therein.

131. Any duly authorised officer of the assessment committee or the overseers of any parish or township in the union shall have power to survey and value at all reasonable times of which due notice shall have been previously given any hereditament in the union or in such parish or township respectively which the said assessment committee or overseers may direct him to survey and value and to take such other steps as may be necessary for ascertaining the correct value of that hereditament. As to inspection and valuation.

132.—(1) Where the assessment committee before approving any new valuation list or supplemental valuation list which has been duly deposited make any alteration or amendment therein they may approve the list without further deposit and any supplemental valuation list shall be deemed to come into force on the date of its approval by the assessment committee. As to alteration &c. of valuation lists.

(2) The provisions of sections 21 and 27 of the Union Assessment Committee Act 1862 shall cease to apply in the union in so far as such provisions are inconsistent with the provisions of this section.

133.—(1) The following enactments shall cease to be in force in the union as from the date upon which the first new valuation list made in pursuance of the section As to existing enactments.

A.D. 1925. — of this Act of which the marginal note is “ Making of valuation lists ” shall come into operation namely :—

(a) Parochial Assessment Act 1836 section 3;

(b) Poor Law Amendment Act 1848 section 7.

(2) Section 26 of the Union Assessment Committee Act 1862 shall cease to apply in the union in so far as that section empowers the assessment committee to direct at any time a new valuation of all the rateable hereditaments in a parish and a new valuation list in substitution for the valuation list in force but otherwise the provisions of that section shall continue to apply in the union and for the purposes of any new valuation list made in accordance with the section of this Act of which the marginal note is “ Making of valuation lists ” the assessment committee shall have all the powers conferred on assessment committees by the section first above mentioned in relation to a new valuation and a new valuation list.

(3) Except as aforesaid and except so far as the same are varied by or inconsistent with the provisions of this Part of this Act the provisions of the statutes mentioned in subsection (1) of this section and of the Poor Law Amendment Act 1868 the Poor Rate Assessment and Collection Act 1869 the Poor Rate Assessment and Collection Act 1869 Amendment Act 1882 and any Act amending those Acts respectively shall continue to apply to the union.

Minister of Health may make orders.

134. Where in the opinion of the Minister of Health the circumstances so require the said Minister may on the application of the assessment committee or the overseers of any parish or township make such order as appears to him to be necessary for the purpose of giving full effect to the foregoing provisions of this Part of this Act or for the removal of any difficulty in carrying those provisions into effect.

(2) *Relating to Borough and Township of Wolverhampton.*

Rating of owners instead of occupiers.

135.—(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the poor rate—

(a) where the rateable value of the property does not exceed ten pounds; or

(b) where the premises are let in separate apartments; or A.I. 1925.

(c) where the rents are collected weekly.

(2) When the Corporation exercise their powers under this section they shall forthwith give notice thereof to the overseers of the township and the overseers of the township shall rate the owner and the owner shall pay the poor rate accordingly and during the currency of any such notice the provisions of this section shall apply within the township in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 in so far as such last mentioned provisions are inconsistent with the provisions of this section.

136.—(1) Subject to the provisions of this section every poor rate in the township shall be made in respect of a period commencing immediately after the expiration of the last preceding period in respect of which a poor rate was made and terminating on such date to be specified in the rate as may be fixed by the overseers and in the case of the last rate made in any financial year the date so fixed shall be the last day of that year.

Provisions
as to opera-
tion and
incidence
of rate.

(2) The amount charged by a rate in respect of any hereditament shall be due from the person who is in occupation of that hereditament during the period in respect of which the rate is made. Provided that if any person is in occupation of a hereditament for part only of the period in respect of which the rate is made the amount due from that person shall be an amount which bears the same proportion to the total amount charged by the rate in respect of that hereditament as the number of days during which that person is in occupation bears to the number of days comprised in the period in respect of which the rate is made.

(3) The provisions of section 38 of the Poor Law Amendment Act 1868 shall apply to newly erected or newly constructed hereditaments with the substitution of the date on which such newly erected or newly constructed hereditaments come into beneficial occupation for the date of any entry of the same in the rate book.

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Service
of rate &c.
demands by
post.

137. The provisions of section 267 of the Public Health Act 1875 shall apply to demand notes for rates in respect of any hereditaments in the borough to be served by the overseers and also in respect of water-rents rates or charges and demands and notices for electricity charges to be served by the Corporation.

As to
borough
rate.

138. The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

Certain
sections
of Public
Health
Act 1875
to apply.

139. Section 220 (Description of owner or occupier) and section 221 (Rates may be amended) of the Public Health Act 1875 shall apply to the borough in respect of the poor rate as if the overseers were an urban authority and the rate therein mentioned were the poor rate and the said section 221 shall extend to enable the overseers to amend any rate made by them in pursuance of this Act so as to make the assessment to such rate accord with any valuation list or supplemental valuation list made during the currency of such rate.

Recovery
of rates
from
persons
removing.

140. In case any person quits or is about to quit any premises in the township before he has paid all poor rates due from him and fails to pay the same on demand the rate collector or any constable may by warrant under the hand of a justice (which warrant a justice is hereby authorised and required to grant without issuing any previous summons to such person upon proof to his satisfaction of such removal or intended removal or that there is reason to suspect the same) distrain the goods and chattels of such person and sell the same rendering the overplus (if any) after having deducted the reasonable expenses attending such distress and sale together with the rates so due to the owner of such goods and chattels upon demand.

(3) *General.*

Saving for
general
Acts.

141. Nothing in the foregoing provisions of this Part of this Act shall prejudice or prevent the operation of any general Act which may be passed by Parliament in the present or any future session and which deals with the matters referred to in those provisions or any of them.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

142.—(1) The Corporation may from time to time Power to
independently of any other borrowing power borrow borrow.
at interest for and in connection with the purposes
mentioned in the first column of the following table the
respective sums mentioned in the second column thereof
and in order to secure the repayment thereof and the
payment of interest thereon they may mortgage or
charge the respective revenue fund and rate mentioned in
the third column of the said table and they shall pay
off all moneys so borrowed within the respective periods
(each of which is in this Act referred to as “the pre-
scribed period”) mentioned in the fourth column thereof
(namely) :—

1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
	£		
(a) The purchase of lands for the construction of the street works authorised by this Act and for other purposes thereof.	The sum requisite.	The borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(b) The construction of the street works authorised by this Act.	45,500	The borough fund and borough rate.	Thirty years from the date or dates of borrowing.
(c) The provision of trolley vehicles.	112,500	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Ten years from the date or dates of borrowing.
(d) The provision of electrical equipment and the construction of other works necessary for working the trolley vehicles authorised by this Act.	50,000	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Twenty years from the date or dates of borrowing.

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1

2

3

4

Purpose.	Amount.	Charge.	Period for Repayment.
(e) The erection of buildings for the purposes of the trolley vehicles of the Corporation.	£ 3,000	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Thirty years from the date or dates of borrowing.
(f) The purchase of tramways.	The sum necessary.	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Twenty years from the date or dates of borrowing.
(g) The reconstruction of the roads upon which the tramways to be removed or discontinued under this Act are situate.	52,000	The borough fund and borough rate.	Thirty years from the date or dates of borrowing.
(h) The payment of the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate or such other funds and revenues and in such proportions as the Corporation may by resolution determine.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part II. (Trolley vehicles and omnibuses) of this Act and with the consent of the Electricity Commissioners such further money as may be necessary for any of the purposes of Part IV. (Electricity) of this Act and with the consent of the Minister of Health such further money as may be necessary for any of the other purposes of this Act.

(b) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital— A.D. 1925.
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- (i) as respects the tramway or omnibus undertakings of the Corporation or the trolley vehicle undertaking authorised by this Act with the consent of the Minister of Transport;
- (ii) as respects the electricity undertaking with the consent of the Electricity Commissioners;
- (iii) as respects the borough fund and borough rate or any undertaking of the Corporation other than the undertakings hereinbefore referred to with the consent of the Minister of Health.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(d) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(e) Any money which the Corporation have with the approval of the Minister of Transport borrowed or expended for the purposes mentioned in subsection (1) of this section shall be deemed to have been borrowed or expended under the authority of this Act.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 94 (Power to include lands &c. in mortgages) or by section 95 (Power to use one form of mortgage for all purposes) of the Act of 1899 as amended by this Act.

143. The Corporation shall notwithstanding anything contained in any other Act to the contrary pay off within a period of ten years from the passing of this Act any loans outstanding at that date in respect of any works forming part of the Corporation tramways which they have power to abandon or discontinue in pursuance of the provisions of Part II. of this Act except such of As to tramway loans.

A.D. 1925. — those works as will be retained by the Corporation for the purposes of the trolley vehicle undertaking authorised by this Act.

Sinking
fund for
purchase
of water
annuities
and rents.

144.—(1) The Corporation shall make provision for the extinction of the annuities and rents payable by them to the Wolverhampton New Waterworks Company under the provisions of the Wolverhampton Waterworks Transfer Act 1867 and the Act of 1869 or either of those Acts by means of a sinking fund so as to purchase and extinguish or to be in a position to purchase and extinguish the said annuities and rents within a period of sixty years from the first day of April nineteen hundred and twenty-six and if at the end of that period the said annuities and rents are not wholly extinguished then the Corporation shall so long as they are liable to pay interest thereon apply in or towards payment thereof the annual income arising from the sinking fund provided under this section.

(2) The provisions of the section of this Act of which the marginal note is "Sinking fund" shall extend and apply with any necessary modifications to the sinking fund to be provided under this section and for the purposes thereof the prescribed period shall be the period of sixty years from the first day of April nineteen hundred and twenty-six.

(3) The Corporation may at any time apply the whole or any part of the sinking fund to be provided under this section in or towards the purchase of the said annuities and rents. Provided that if such fund be an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) At any time before the expiration of the prescribed period the Corporation may borrow at interest such money as they may require for the purchase of the said annuities and rents and in order to secure the repayment of any money so borrowed and the payment of interest thereon the Corporation may mortgage or charge

the revenue of the water undertaking of the Corporation and the borough fund and borough rate. A.D. 1925.

(b) The provisions of the Act of 1920 with reference to the borrowing of money and the repayment thereof shall with any necessary modifications extend and apply to all money borrowed under this section and for the purposes of those provisions the prescribed period shall be the period of sixty years from the first day of April nineteen hundred and twenty-six.

(5) Any moneys borrowed by the Corporation under this subsection shall be deemed to be "moneys borrowed for waterworks purposes" within the meaning of Article XIII. of the Order of 1888.

(6) Article XIII. of the Order of 1888 shall be read and have effect as if the following paragraph were inserted immediately after paragraph (7) thereof and immediately before paragraph (8) referred to in subsection (6) of section 37 of the Act of 1920 namely:—

(8) In making provision for the extinction of the annuities and rents referred to in the section of the *Wolverhampton Corporation Act 1925* of which the marginal note is "Sinking fund for purchase of water annuities and rents" in accordance with the provisions of that section.

145.—(1) Notwithstanding anything contained in the *Public Health Acts Amendment Act 1890* or in any other Act or Order on and after the thirty-first day of March nineteen hundred and twenty-six the Corporation may (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid as and when they are received—

(a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and

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—

- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt;

and there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date as from which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation; and
(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation;

and the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the interest arising from the investments thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act the repayment of all stock of and loans to the Corporation and payment of the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund. A.D. 1925.

146.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the

A.D. 1925. interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(6) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

(7) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period

the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed. A.D. 1925.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

(11) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

147. Notwithstanding anything contained in the Acts or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund which has been formed by the Corporation for any purpose shall be at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve. Further provisions as to sinking funds.

148. The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any fund accumulated for the redemption of debt or as a reserve renewals contingent or insurance fund (in this section respectively referred to as sinking and other funds). Use of moneys forming part of sinking and other funds.

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to as “the lending fund”) and not for the time being required for the purpose for which the moneys have been accumulated subject to the following conditions:—

- (1) The money so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established and (subject thereto) within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable:
- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid to the fund and such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power:
- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

As to
section 234
of Public
Health
Act 1875.

149. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

Investment
of and
payments
into sinking
fund.

150. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly

sums and to the accumulations (if any) thereof required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation that is to say :—

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(1) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities :

(2) The accumulations of the said yearly sums shall be paid and provided out of the borough fund and borough rate and any interest dividends and the proceeds arising from the investment of the said yearly sums and the accumulations thereof including any moneys standing to the credit of any sinking fund or loans fund as aforesaid at the passing of this Act shall be paid into the borough fund.

151. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Period for repayment of loans under Municipal Corporations Act 1882.

152. The purpose to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

Borough rate may include working balance.

153.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to Minister of Health with respect to repayment of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or

A.D. 1925. — other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of any Acts or Provisional Orders now in force in the borough or by any regulations made thereunder notwithstanding anything contrary to or inconsistent therewith in any such Act Order or regulation.

Receipt in
case of
persons not
sui juris.

154. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Interest on
mortgages
held
jointly.

155. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

156. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as may be reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

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 Apportionment of items.

157. Article XIII. of the Order of 1888 shall be read and have effect and be deemed to have always had effect as if the words “ prior to the passing of the Wolverhampton Corporation Loans Act 1882 ” were omitted therefrom.

Amendment of Article XIII. of Order of 1888.

158. Section 86 (Issue of different classes of stock) of the Act of 1899 shall be read and have effect as if the words “ not exceeding three pounds ten shillings per centum per annum ” in subsection (1) thereof were omitted therefrom.

Amendment of section 86 of Act of 1899.

159.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “ the appointed auditor.”

Appointed auditors.

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditor and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

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(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Subscrip-
tions to
local
government
associations
and other
expenses.

160. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882—

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings :

(b) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

Appoint-
ment of
deputies for
certain
offices.

161. The Corporation may from time to time appoint fit and proper persons to be deputy medical officer of health and deputy surveyor of the borough respectively during their pleasure and all things required or authorised by law to be done by or to the medical officer or the surveyor may during the absence or illness of the medical officer or surveyor (as the case may be) be done by or to the deputy medical officer of health and the deputy surveyor so appointed respectively.

As to bye-
laws under
Act of 1869.

162. From and after the passing of this Act section 368 (Regulations as to byelaws) of the Act of 1869 shall not apply with respect to byelaws to be made by the Corporation which require confirmation by the Minister of Health but in lieu thereof the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they

relate to byelaws made by an urban sanitary authority shall apply to those byelaws. A.D. 1925.

163.—(1) The Corporation may sell any ice produced by means of any ice-making apparatus which they have provided or may provide in pursuance of Article VI. of the Wolverhampton Order 1900. Power to sell ice.

(2) Section 38 (Power to sell surplus ice) of the Act of 1904 is hereby repealed.

164.—(1) The following provisions of the Act of 1899 the Act of 1904 the Order of 1911 the Act of 1915 and the Act of 1920 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):— Application of certain provisions of existing Acts.

The Act of 1899—

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|---------|----|---|
| Section | 6 | (Correction of errors &c. in deposited plans and book of reference); |
| Section | 7 | (Period for compulsory purchase of lands); |
| Section | 8 | (Owners may be required to sell parts only of certain lands and buildings); |
| Section | 9 | (Persons under disability may grant easements &c.); |
| Section | 12 | (Power to retain sell &c. lands); |
| Section | 13 | (Proceeds of sale of surplus lands); |
| Section | 70 | (Certain regulations of Public Health Act 1875 as to borrowing not to apply); |
| Section | 71 | (Mode of raising money) ; |
| Section | 72 | (Provisions of Public Health Act as to mortgages to apply); |
| Section | 76 | (Protection of lender from inquiry); |
| Section | 77 | (Corporation not to regard trusts); |
| Section | 78 | (Appointment of receiver); |
| Section | 82 | (Application of money borrowed); |
| Section | 83 | (Expenses of execution of Act); |
| Section | 96 | (Inquiries by Local Government Board). |

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The Act of 1904—

- Section 11 (Temporary stoppage of streets);
- Section 87 (Audit of accounts);
- Section 91 (General provisions as to byelaws);
- Section 94 (As to appeal);
- Section 95 (Compensation how to be determined);
- Section 96 (Recovery of penalties);
- Section 97 (Information &c. by whom to be laid);
- Section 98 (Penalties to be paid over to treasurer);
- Section 100 (Crown rights).

The Order of 1911—

Article VI. (Power to re-borrow).

The Act of 1915—

- Section 6 (Compensation in case of recently acquired interest);
- Section 49 (Mode of payment off of money borrowed) except subsection (2) thereof.

The Act of 1920—

- Section 6 (Subsidiary works);
- Section 7 (Limits of deviation);
- Section 8 (Extinction of private rights of way).

(2) Provided that—

- (a) The said section 8 of the Act of 1899 shall for the purposes of such application apply in respect of the premises referred to in the Third Schedule to this Act and those premises shall be the scheduled properties within the meaning of that section;
- (b) The said section 96 of the Act of 1899 shall have effect as if the words “five guineas” were inserted therein instead of the words “three guineas”;
- (c) The said section 11 of the Act of 1904 shall only apply in relation to the provisions of Parts II. and III. of this Act;

(d) In the exercise by the Corporation of the powers of the said section 11 of the Act of 1904 for the purposes of this Act the Corporation shall at all times maintain reasonably sufficient access both for vehicular and pedestrian traffic to the stations and depôts of any railway company; A.D. 1925.

(e) The said section 91 of the Act of 1904 shall have effect as if the following words were inserted at the end thereof namely “except where
 “otherwise provided and except that as regards
 “byelaws made under any provision contained
 “in Part VIII. (Police provisions) of this Act
 “the Secretary of State shall be substituted
 “for the Minister of Health”;

(f) The said section 6 of the Act of 1915 shall for the purposes of such application have effect as if the fifteenth day of November nineteen hundred and twenty-four were therein mentioned instead of the twentieth day of November nineteen hundred and fourteen.

165. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VI. (Streets buildings streams &c.) Part VII. (Infectious disease and sanitary provisions) and Part VIII. (Police provisions) of this Act as if those purposes had been mentioned in the said section 102. Power to enter premises.

166. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VI. (Streets buildings streams &c.) and Part VII. (Infectious disease and sanitary provisions) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall Penalty on occupier refusing execution of Act.

A.D. 1925. — so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

Authentica-
tion and
service of
notices &c.

167.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Consents of
Corporation
to be in
writing.

168. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Evidence
of appoint-
ments
authority
&c.

169. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution

order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1925.

170. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

171. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Apportionment of expenses in case of joint owners.

172. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

173. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

174. Where the payment of more than one sum by any person is due under any Act or Order for the time being in force in the borough any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Summons or warrant may contain several sums.

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Application of
section 265 of
Public Health
Act 1875.Inquiries by
Minister of
Transport.Powers of
Act cumu-
lative.Costs of
Act.

175. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

176. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

177. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

178. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of such other funds and revenues and in such proportions as the Corporation may by resolution determine or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1925.

FIRST SCHEDULE.

PART I.

AN AGREEMENT made this sixteenth day of July nineteen hundred and twenty-five between THE WOLVERHAMPTON DISTRICT ELECTRIC TRAMWAYS LIMITED (hereinafter called "the Wolverhampton Company") of the first part THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WOLVERHAMPTON (hereinafter called "the Corporation") of the second part THE SHROPSHIRE WORCESTERSHIRE AND STAFFORDSHIRE ELECTRIC POWER COMPANY (hereinafter called "the Shropshire Company") of the third part THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF DUDLEY (hereinafter called "the Dudley Corporation") of the fourth part and THE BRITISH ELECTRIC TRACTION COMPANY LIMITED (hereinafter called "the Traction Company") of the fifth part.

WHEREAS by the Dudley and Wolverhampton Tramways Order 1899 duly confirmed by the Tramways Orders Confirmation (No. 3) Act 1899 (hereinafter referred to as "the Order of 1899") the Dudley and Wolverhampton Tramways Limited (in the Order of 1899 referred to as "the Dudley and Wolverhampton Tramways Company Limited") were empowered to reconstruct the tramways authorised by the Dudley Sedgley and Wolverhampton Tramways Order 1880 other than so much of the tramways works and undertakings authorised by that Order as amended by the Dudley Sedgley and Wolverhampton Tramways Order 1884 as were situate in the borough of Wolverhampton (which tramways so authorised to be reconstructed are hereinafter referred to as "the said tramways") for the purposes of adapting the same for working by mechanical power :

And whereas by an indenture dated the 3rd day of June 1899 and made between the Dudley and Wolverhampton Tramways Limited of the first part Walter James Kershaw of the second part George Edmund Abell and Harry Bramble

[Ch. cxxiii.] *Wolverhampton* [15 & 16 GEO. 5.]
Corporation Act, 1925.

A.D. 1925. Francis of the third part and the Traction Company of the fourth part the said tramways and the undertaking of the Dudley and Wolverhampton Tramways Limited were for the consideration therein mentioned transferred to the Traction Company :

And whereas by an indenture dated the 27th day of October 1903 and made between the Traction Company of the one part and the Wolverhampton Company of the other part the said tramways together with other property were with the consent of the Board of Trade transferred to the Wolverhampton Company :

And whereas by an indenture dated the 8th day of November 1909 and made between the Wolverhampton Company of the one part and the Dudley Corporation of the other part such part of the said tramways as was situate in the borough of Dudley was transferred to the Dudley Corporation :

And whereas by another indenture dated the 8th day of November 1909 and made between the Traction Company of the one part and the Dudley Corporation of the other part certain light railways in Stafford Street Dudley (hereinafter called "the Stafford Street Light Railways") constructed under the Dudley and District Light Railways (Extension) Order 1900 were transferred to the Dudley Corporation :

And whereas by an indenture of lease (hereinafter referred to as "the lease") dated the 9th day of November 1909 and made between the Dudley Corporation of the one part and the Traction Company of the other part the tramways and light railways mentioned in the two several indentures dated the 8th day of November 1909 were with other premises demised to the Traction Company for the term of 30 years from the 1st day of January 1909 subject to the rent thereby reserved and the covenants and conditions therein contained :

And whereas by an indenture of sub-lease dated the 15th day of April 1910 and made between the Traction Company of the one part and the Wolverhampton Company of the other part the Traction Company demised to the Wolverhampton Company so much of the lastly before recited premises as are specified in paragraphs 3 and 4 of the schedule to the lease for the aforesaid term of 30 years except the last day thereof subject to the annual rent of 888*l.* 17*s.* 9*d.* thereby reserved and the covenants and conditions therein contained :

And whereas the said tramways are situate outside the borough of Wolverhampton and form a continuation of authorised tramways within the borough and can be worked in connection therewith :

And whereas by section 48 of the Wolverhampton Corporation Act 1899 it is provided that the power conferred on the

Corporation by the Tramways Act 1870 to purchase tramways .A.D. 1925.
within the borough by agreement shall be extended so as to
authorise the Corporation by agreement to purchase any autho-
rised tramways outside the borough which form continuations
of authorised tramways at any time existing within the borough
or which can be worked in connection therewith :

And whereas by section 51 of the same Act it is provided
(inter alia) to the effect that the Corporation shall not exercise
the powers conferred upon them by the said section 48 in the
urban districts of Coseley and Sedgley except with the consent
of the Coseley Urban District Council and the Sedgley Urban
District Council respectively :

And whereas portions of the said tramways are within or
partly within the Coseley Urban District and the Sedgley Urban
District and the Corporation have obtained the consent of the
urban district councils of Coseley and Sedgley to the exercise
by the Corporation of their powers under section 48 of the
Wolverhampton Corporation Act 1899 in relation thereto :

And whereas the Corporation are willing (if duly authorised
so to do) to operate a service of trolley vehicles along the route
of the said tramways and it has been agreed between the Corpo-
ration and the Dudley Corporation that subject to the necessary
powers for that purpose being conferred upon them by Parliament
the Wolverhampton Corporation shall operate such a service
between Wolverhampton and Dudley in lieu of the service now
afforded by the said tramways :

And whereas the operation of the proposed service of trolley
vehicles in lieu of the said tramways would render useless and
unworkable the Stafford Street light railways :

And whereas in order to carry into effect the said agreement
and in consideration of the covenants herein contained the
Wolverhampton Company have agreed to surrender to the
Traction Company and the Traction Company have agreed to
accept a surrender of the premises comprised in and demised
by the said sub-lease dated the 15th day of April 1910 and in
consideration of the said covenants the Traction Company have
agreed to surrender to the Dudley Corporation and the Dudley
Corporation have agreed to accept a surrender of so much of
the premises comprised in and demised by the lease as is
specified in paragraphs 3 and 4 of the schedule thereto except
the four electric cars referred to in paragraph 7 of this agreement :

And whereas electricity is supplied to other tramways of the
Wolverhampton Company from the generating station in Dudley
of the Shropshire Company by means of an electric high tension
cable which passes through the borough of Dudley the urban
districts of Sedgley and Coseley and the urban district of Bilston
to the depôt of the Wolverhampton Company at Bilston :

A.D. 1925.

And whereas the Shropshire Company are at present supplying with electrical energy the tramways and light railways in the borough of Dudley which are leased to the Traction Company :

And whereas the Corporation have agreed to take from the Shropshire Company all electrical energy required by them or by any person lawfully working under them for the operation within the borough of Dudley of the trolley vehicles proposed to be operated by them as aforesaid within that borough :

And whereas the Wolverhampton Company have agreed with the Corporation for the sale to them of such portion of the said tramways as is situate within the urban districts of Sedgley and Coseley together with the land and premises hereafter described at the price hereafter mentioned :

And whereas the Corporation are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") for (inter alia) the purpose of enabling them to operate the proposed system of trolley vehicles and of confirming this agreement :

Now therefore it is hereby agreed by and between the parties hereto as follows that is to say :—

1. The Wolverhampton Company shall sell and convey to the Corporation and the Corporation shall purchase from the Wolverhampton Company for the sum of 25,000*l.*—

(a) so much of the said tramways as is situate in the urban districts of Sedgley and Coseley between the Dudley boundary at Shaver's End and the Fighting Cocks at the Wolverhampton boundary ;

(b) the tramway dépôt delineated on the plan attached hereto and thereon coloured pink and brown subject to the covenants and conditions to which the Wolverhampton Company are subject under and by virtue of an indenture dated the 10th day of February 1883 and made between John Kimberley of the one part and the Dudley Sedgley and Wolverhampton Tramways Company Limited of the other part.

2. The title of the Wolverhampton Company to so much of the said tramways as is referred to in paragraph 1 (a) hereof shall commence with the Orders under and by virtue of which the same are authorised and the title to the tramway dépôt referred to in paragraph 1 (b) hereof shall commence with the said indenture dated the 10th day of February 1883.

3. The said sale and purchase shall be completed and the purchase money paid on and all outgoings apportioned as on the seventh day after the Royal Assent shall have been given to the Bill and as from the said seventh day the Corporation shall be entitled to all receipts and profits of so much of the said

A.D. 1925.

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tramways as is referred to in paragraph 1 hereof and shall indemnify the Wolverhampton Company against all outgoings expenses obligations and liabilities (except obligations in relation to agreements as to advertisements on tramcars) in connection therewith. If for any reason other than the wilful default of the Wolverhampton Company such sale shall not be completed on the said seventh day after Royal Assent the Corporation shall pay to the Wolverhampton Company interest on the said sum of 25,000*l.* at the rate of 5 per centum per annum.

4. The sale and purchase referred to in paragraph 1 hereof shall not include stores the extra high tension cable and duct from Dudley through the local government areas of Dudley Sedgley Coseley and Bilston to the Wolverhampton Company's depôt at Bilston but shall include all other cables belonging to the Wolverhampton Company from the Dudley generating station of the Shropshire Company by means of which the said tramways are supplied with electricity and the ducts in which such cables are laid together with the extension of those ducts to a point near to the Fighting Cocks public-house.

5. The sale and purchase referred to in paragraph 1 hereof is made subject to the contracts set out in the schedule hereto and subject also to all liabilities and engagements of the Wolverhampton Company which are outstanding or undischarged on the date of completion of the said sale and relate to the portion of the said tramways referred to in paragraph 1 (a) hereof provided that such liabilities and engagements have been entered into in the ordinary course of business the Corporation shall as from the date of completion of the said sale and purchase keep the Wolverhampton Company and the Traction Company indemnified against all such contracts liabilities and engagements and all claims and demands in respect thereof and also against all claims in respect of the statutory obligations of the Wolverhampton Company or the Traction Company under the Acts and Orders relating to the said tramways but not further or otherwise.

6. The Wolverhampton Company shall on the said seventh day after the Royal Assent shall have been given to the Bill surrender to the Traction Company the premises comprised in and demised by the said indenture of sub-lease dated the 15th day of April 1910 and the Traction Company shall accept such surrender.

7. The Traction Company shall on the said seventh day after the Royal Assent shall have been given to the Bill surrender to the Dudley Corporation so much of the premises comprised in the lease as are specified in paragraphs 3 and 4 of the schedule

A.D. 1925. thereto except the four electric cars referred to in the said paragraph 3 (c) and the Dudley Corporation shall—

- (a) accept such surrender;
- (b) as from the date thereof reduce the yearly rent reserved by the lease by the sum of 888*l.* 17*s.* 9*d.*;
- (c) release the Traction Company and any persons claiming through the Traction Company from the covenants and conditions of the lease so far as the same relate to the premises specified in paragraphs 3 and 4 of the schedule thereto:

Provided however that nothing herein contained shall be deemed to release the Traction Company from the liability to pay to the Dudley Corporation any rent or other sum which has accrued or is accruing due at the date of such last-mentioned surrender; and

- (d) release the Traction Company from obligation to deliver up four electric cars double decked and numbered 5 6 7 and 14 referred to in the said paragraph 3 (c).

8. As from the date of the surrender referred to in the last preceding paragraph hereof the Corporation shall pay to the Dudley Corporation the sum of 888*l.* 17*s.* 9*d.* per annum for the remainder of the term of 30 years referred to in the lease by equal quarterly payments without deduction (except landlord's property tax) and shall for the remainder of the same term pay and discharge all taxes rates charges assessments and outgoings payable in respect of the poles and equipment of the proposed trolley vehicles.

9. The Dudley Corporation shall at the request in writing of the Wolverhampton Corporation with all convenient speed proceed to remove the rails and track of so much of the said tramways as is situate in the borough of Dudley and such of the posts standards brackets and other works and apparatus used in connection therewith as the Corporation may not require to use in connection with the said trolley vehicles and will upon such removal with all reasonable speed reconstruct the carriageways along which so much of the said tramways as aforesaid is situate. The Dudley Corporation may also remove the rails and track and overhead equipment and apparatus of the Stafford Street light railways and reconstruct the carriageway upon which the same are laid. Such reconstruction of the said first-mentioned carriageways shall be carried out with a two-inch bitumistic carpet or other suitable material to be laid down upon a six-inch concrete foundation and the Dudley Corporation shall thereafter maintain the said carriageways in a reasonable state of repair. Provided that the Dudley Corporation shall not be deemed to have accepted under the terms of this agreement any greater obligation than is imposed upon them as highway authority.

10. The Dudley Corporation shall also reconstruct in a good and substantial manner and shall thereafter maintain in reasonable repair the carriageway along Wolverhampton Street and Priory Street Dudley from the present terminus of the said tramways in Wolverhampton Street to the wholesale vegetable market and shall at that market construct a turning place for trolley vehicles having a radius of not less than thirty feet such turning place to be constructed in the same manner as the carriageway referred to in this paragraph and to the reasonable approval of the Corporation. .A.D. 1925.

11. The Dudley Corporation shall carry out the reconstruction of the said carriageways and the construction of the said turning place respectively referred to in paragraphs 9 and 10 hereof in such a manner as to facilitate as far as possible the operation of the temporary service referred to in paragraph 13 hereof.

12. The Corporation shall pay to the Dudley Corporation the sum of 3,250*l.* towards the cost of reconstructing the said carriageways and constructing the said turning place such payment to be made by two equal instalments the first of which shall be paid upon the certificate of the borough engineer of the Dudley Corporation certifying that one-half of the work has been completed and the second upon the certificate of the borough engineer of the Dudley Corporation certifying the completion of the said reconstruction and the payment of such instalments shall discharge the Corporation from all claims which may be brought or made against them in respect of the removal of the rails and track and the reconstruction of the carriageways aforesaid and the construction of the said turning place and in respect of the maintenance and repair of such carriageways and turning place except such expenses of repair as may be necessary on account of the negligence or misconduct of servants of the Corporation.

13. The Corporation shall provide a temporary passenger service as from the seventh day after the Royal Assent shall have been given to the Bill along so much of the route of the said tramways as is situate in the borough of Dudley and as from the completion of the sale and purchase referred to in paragraph 1 of this agreement along the remainder of the route of the said tramways either by continuing to operate tramways thereover or by the running of omnibuses or partly by one means and partly by the other. Such temporary service shall continue during the work of reconstructing the carriageways along the whole of the route of the said tramways and of constructing the said turning place and be provided in as efficient a manner as all the circumstances of the case reasonably admit.

14. All posts standards brackets and other works and apparatus used in connection with so much of the said tramways

A.D. 1925,

—

as is situate in the borough of Dudley may be used by the Corporation in connection with the said trolley vehicles and shall be maintained and kept in good repair by the Corporation and shall not without the consent of the Dudley Corporation be used by the Corporation for advertising purposes other than in respect of fare stages stopping places and time tables relating to the running of trolley vehicles and all other posts standards brackets and other works and apparatus which shall hereafter be erected or provided by the Corporation in the borough of Dudley shall vest in and become the property of the Dudley Corporation on the first day of January nineteen hundred and thirty-nine.

15. The Corporation shall take from the Shropshire Company and the Shropshire Company shall supply to the Corporation all the electricity required by the Corporation for the operation within the borough of Dudley of the system of trolley vehicles proposed to be authorised by the Bill and of the portion of the said tramways within that borough (if and so long as the same shall continue to be operated by the Corporation) at such price and subject to such terms and conditions as shall in the event of difference be determined by a single arbitrator to be named failing agreement by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply For the purposes of this clause the expression "the Corporation" shall include any person lawfully working under the Corporation the said system of trolley vehicles or the said portions of the said tramways.

16. The Dudley Corporation and the Shropshire Company shall release the Traction Company and the Shropshire Company shall release the Dudley Corporation from all obligation to take or use a supply of electricity for the operation of such parts of the premises comprised in and demised by the lease as are specified in paragraphs 3 and 4 of the schedule thereto.

17. In the event of any difference arising between the parties to this agreement as to the true intent and meaning thereof or as to any matter or thing arising thereunder or in connection therewith or as to the giving or the withholding of any approval herein mentioned the same shall be referred to the arbitration of a single arbitrator to be agreed upon or failing agreement to be appointed by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration Provided that this paragraph shall not apply to any question arising in respect of the payment of the rent payable hereunder by the Corporation to the Dudley Corporation or to any question relating to or arising

out of the payment or non-payment of such rent or to any matter arising out of paragraph 15 hereof. A.D. 1925.

18. This agreement is subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein provided nevertheless that in the event of either House of Parliament making any material alteration in this agreement it shall be competent to any party hereto on giving notice to the other parties before the Bill is read the third time in the second House to withdraw from this agreement and in that case or in the event of the intended Bill failing to become law this agreement except this clause shall be void and of no effect.

In witness whereof the parties hereto have hereunto set their respective common seals the day and year first above written.

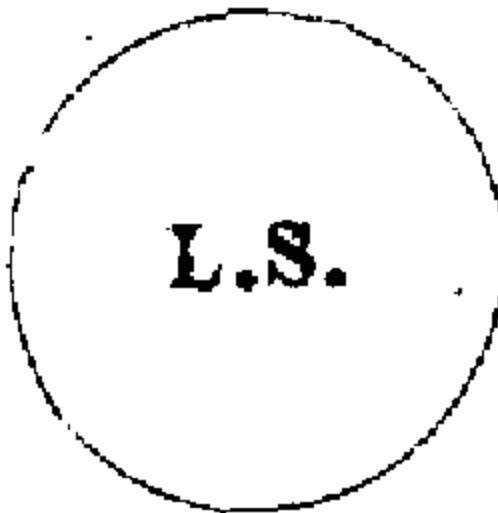
The SCHEDULE.

Date of Contract or Agreement.	With whom made.	Brief Particulars.
10th February 1883	Jno. Kimberley -	Attention is directed to the mineral right reservations right of way &c. appearing in this conveyance.
3rd March 1899	- Sedgley U.D.C. -	Payment to Sedgley of 75 <i>l.</i> per annum for periodical inspection of the tramways (clause 6).
4th March 1899	- Coseley U.D.C. -	Payment to Coseley of 25 <i>l.</i> per annum for periodical inspection of the tramways (clause 6).
16th October 1902 and 12th August 1918.	C. H. Oakes and F. Hughes Jno. Millard.	Easement payment of 1 <i>l.</i> per annum in respect of windows and ventilators and right of way.
March 1910 to December 1919 (various).	P.O. Authorities -	Carriage of (15) mail bags at a total annual charge of 55 <i>l.</i> 2 <i>s.</i> 6 <i>d.</i>
23rd October 1923	Wolverhampton Corporation.	Through running agreement.
14th November 1923	M. E. W. and W. H. Marsh (as executors of Martha Smith). Inspector Stevens	Tenancy of waiting room and dwelling-house for 3 years from 25th September 1923 rental 30 <i>l.</i> per annum. The dwelling-house attached to the Sedgley tramway depôt is let to inspector Stevens at a rental of 2 <i>s.</i> 6 <i>d.</i> per week.

A.D. 1925. The common seal of the Wolverhampton
District Electric Tramways Limited was
hereunto affixed in the presence of

JAS. A. LYCETT }
W. G. BOND } Directors.

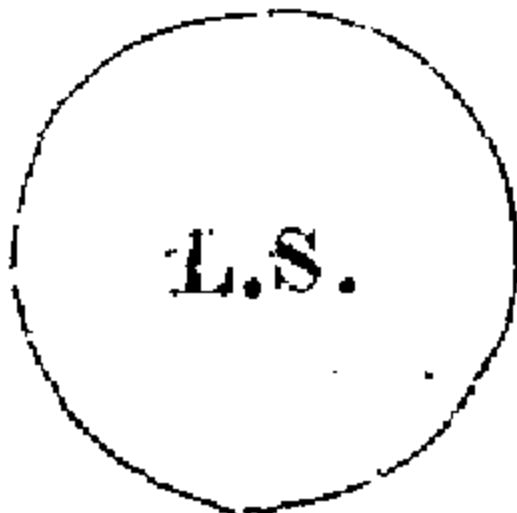
L. EARDLEY
Acting Secretary.

L.S.

The corporate common seal of the mayor
aldermen and burgesses of the borough
of Wolverhampton was hereunto affixed
in the presence of

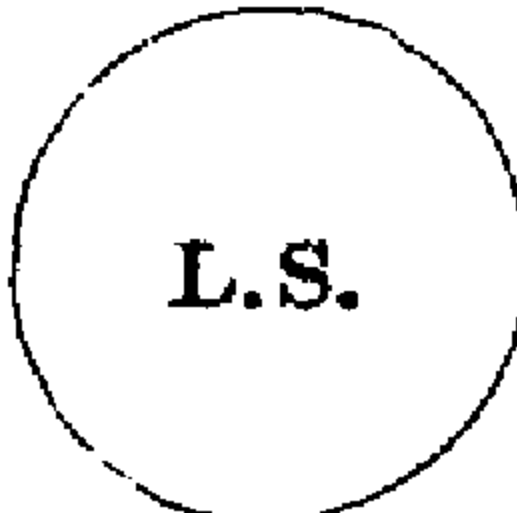
J. CLARK
Mayor.

F. E. W. HOWELL
Town Clerk.

L.S.

The common seal of the Shropshire Wor-
cestershire and Staffordshire Electric
Power Company was hereunto affixed in
the presence of

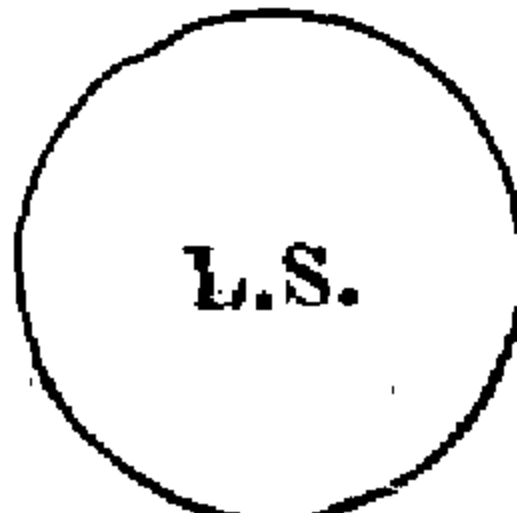
P. M. ROSSDALE }
C. SHIRREFF HILTON } Directors.
R. P. BEDDOW
Secretary.

L.S.

The corporate common seal of the mayor
aldermen and burgesses of the borough
of Dudley was hereunto affixed in the
presence of

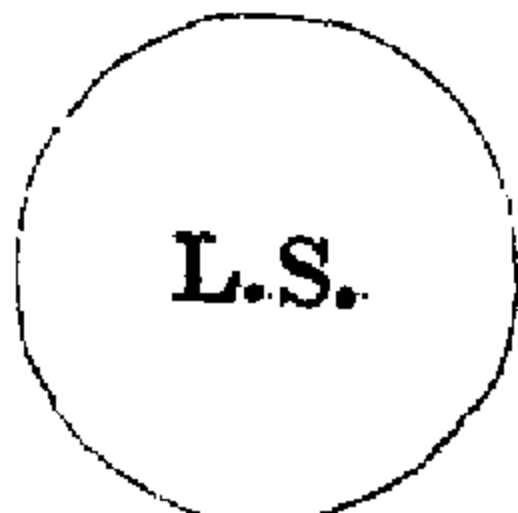
JAMES SMELLIE
Mayor.

GEOFFREY KNOWLES
Town Clerk.

L.S.

The common seal of the British Electric
Traction Company Limited was hereunto
affixed in the presence of

C. SHIRREFF HILTON }
RICHARD J. HOWLEY } Directors.
THOMAS BOWER
Secretary.

L.S.

PART II.

A.D. 1925.

AN AGREEMENT made the twenty-ninth day of April nineteen hundred and twenty-five between THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WOLVERHAMPTON (hereinafter referred to as "the Corporation") of the first part THE SEDGLEY URBAN DISTRICT COUNCIL (hereinafter referred to as "the Sedgley Council") of the second part and THE COSELEY URBAN DISTRICT COUNCIL (hereinafter referred to as "the Coseley Council") of the third part.

WHEREAS by the Dudley and Wolverhampton Tramways Order 1899 the Dudley and Wolverhampton Tramways Company Limited were authorised to reconstruct the tramways authorised by the Dudley Sedgley and Wolverhampton Tramways Order 1880 other than so much of the tramways works and undertakings authorised by that Order as amended by the Dudley Sedgley and Wolverhampton Tramways Order 1884 as was situate in the borough of Wolverhampton for the purposes of adapting the same for working by mechanical power :

And whereas so much of the lastly recited tramways works and undertakings including the tramway dépôt situate in or near Dudley Road Sedgley but excluding the four electric cars double decked and numbered 5 6 7 and 14 and the high tension cable from Dudley through the local government areas of Dudley Coseley Sedgley and Wolverhampton to Bilston as are situate within the urban districts of Sedgley and Coseley (hereinafter called "the said tramway") are vested in the Wolverhampton District Electric Tramways Limited (hereinafter called "the company") and form a continuation of authorised tramways within the borough of Wolverhampton and can be worked in connection with existing tramways within the borough of Wolverhampton :

And whereas by section 48 of the Wolverhampton Corporation Act 1899 the power conferred on the Corporation by the Tramways Act 1870 to purchase tramways within the borough by agreement is extended so as to authorise the Corporation by agreement to purchase any authorised tramways outside the borough which form continuations of authorised tramways at any time existing within the borough or which can be worked in connection therewith :

And whereas by section 51 of the said Act of 1899 it is provided that the Corporation shall not exercise any of the powers conferred upon them by section 48 of the said Act of

A.D. 1925. 1899 in the urban districts of Sedgley and Coseley except with the consent of the owning authority (in the said Act of 1899 defined as inter alia the Sedgley and Coseley Councils and the company respectively) and of the British Electric Traction Company Limited their successors and assigns :

And whereas the company has agreed to sell and the Corporation has agreed to purchase the said tramways subject to the terms and conditions hereinafter appearing :

And whereas the carriageways hereinafter mentioned form part of a main road or main roads the right to maintain and repair which (so far as their respective areas are concerned) was retained by the Sedgley and Coseley Councils respectively under and by virtue of the provisions of the Local Government Act 1888 and such carriageways are partly within the local government area of Sedgley and partly within the local government area of Coseley :

And whereas the Sedgley Council and the Coseley Council have agreed to make up so much of the said carriageways as is now maintained by them respectively and to join in these presents as hereinafter mentioned :

Now it is hereby agreed by and between the parties hereto as follows :—

1. The Corporation will purchase the said tramways and will immediately in advance of or in conjunction with constructional work remove the granite setts rails and track of the said tramway in such manner as not to interfere unnecessarily with traffic arrangements and such setts rails and tracks shall be and remain the property of the Corporation and shall be forthwith removed from the site of the works by or at the expense of the Corporation. The Corporation will accept responsibility for all accidents and damage to persons or property which may arise in connection therewith and will indemnify the respective councils from all actions claims and demands which may be made against them for or in respect of any such accidents or damage as aforesaid.

2. The Sedgley and Coseley Councils hereby consent to the exercise by the Corporation in respect of the said tramway of the powers conferred upon the Corporation by section 48 of the Wolverhampton Corporation Act 1899 in the urban districts of Sedgley and Coseley and hereby surrender all or any right or rights to purchase the said tramway at any time.

3. The Sedgley and Coseley Councils will immediately the tramway track is so removed or simultaneously with such removal reconstruct to the reasonable approval of the county surveyor the whole width of the carriageways (in their respective districts) from which the setts rails and track are to be removed as aforesaid with a two-inch bitumastic carpet laid upon the existing concrete foundation under the tramway track and upon a six-inch concrete foundation to be laid in the margins of the road each

side of such track and will thereafter maintain the carriageway in a reasonable state of repair. A.D. 1925.

4. The reconstruction of the carriageways shall be carried out with all reasonable speed and during the work of reconstruction the Corporation shall provide a temporary passenger service along the route of the said tramway either by continuing to operate tramways thereover or by the running of omnibuses or partly by one means and partly by the other. Such temporary service shall be provided in as efficient a manner as all the circumstances of the case reasonably admit and the reconstruction shall be carried out in such a way as to facilitate as far as possible the operation of such service.

5. The Corporation will pay towards the cost of the reconstruction of that part of the carriageways now repairable by the company and occupied by the track and margins thereto of the said tramway the sum of eight shillings and sixpence per square yard and such payment shall be made each month for such portion of the work as may have been completed by the end of such month and such payment shall discharge the Corporation for all time from all claims which may be brought or made against them in respect of the reconstruction of the said carriageways or the maintenance and repair thereof.

6. As soon as practicable after the reconstruction of the said carriageways the Corporation will provide and thereafter maintain subject as hereinafter provided between Wolverhampton and Dudley a proper and adequate system of trolley vehicles and the Corporation shall have the exclusive right to provide and maintain such service so far as the Sedgley and Coseley Councils and each of them may legally grant such right and the said Councils respectively hereby consent to the Corporation operating such system for a period of thirty years from the first day of July nineteen hundred and twenty-six.

7. The Corporation shall not be liable as regards any delay or interruption in the service intended to be given under this agreement which may be caused by reason or on account of any strike of workmen the act of God unavoidable accident or any other circumstances beyond their control.

8. In case of breakdown of the trolley vehicle system or any part thereof or to supplement the same temporarily if and to the extent to which the traffic requirements render it necessary or desirable so to do the Corporation may run motor omnibuses in the Sedgley and Coseley Urban Districts and may if at any time it becomes by virtue of developments of transport facilities desirable (with the consent of the Sedgley and Coseley Councils respectively) substitute another class of vehicle (not being motor omnibuses) for the trolley vehicles proposed to be operated by them. The consent of the Sedgley and Coseley Councils under this paragraph shall not be unreasonably withheld.

A.D. 1925.

9. The Sedgley and Coseley Councils will grant to the Corporation any licence or consent which may be necessary for the running of the service or services contemplated in this agreement and shall afford to the Corporation every reasonable facility for the efficient running of the said service or services.

10. The Corporation will consult with the Sedgley and Coseley Councils as to the points on the route to be fixed as stopping places and where necessary and subject to any necessary consents being obtained the Corporation will provide and maintain a lamp at each stage but the decision of the Corporation as to such stopping places or lamps shall be final.

11. The Corporation will construct a covered shelter near the junction of the Wolverhampton Road and Parkfield Road for the convenience of persons waiting to board the vehicles and shall subject to their obtaining any necessary consents provide barriers therein for regulating the boarding of the said vehicles on the queue system.

12. As far as possible the Corporation will engage in connection with the operation of the trolley vehicle system such of the employees now engaged in connection with the existing tramway system as are in the opinion of the Corporation suitable.

13. (i) During the said period of thirty years and so long thereafter as the Corporation shall run a service for carrying persons along the route of the said tramway the Corporation will pay to the Coseley Council the sum of twenty-five pounds per annum on the twenty-ninth day of September in each year.

(ii) The agreement dated the fourth day of March eighteen hundred and ninety-nine and made between the Coseley Urban District Council of the one part and the British Electric Traction Company Limited of the other part and the agreement dated the third day of March eighteen hundred and ninety-nine and made between the Sedgley Urban District Council of the one part and the British Electric Traction Company Limited of the other part shall absolutely cease and determine as from the date of the completion of the purchase of the said tramway.

14. The Corporation having at their own expense promoted in the present session of Parliament a Bill to authorise the establishment of the said trolley vehicle service the Sedgley and Coseley Councils and each of them will give their support to the said Bill in so far as it relates to the subject of this agreement and if desired and at the cost of the Corporation will give evidence in support of the said Bill and at the request of the Corporation petition against alteration thereto and appear in support of such petition.

15. In the event of any difference arising between the parties to this agreement as to the true intent and meaning thereof or as to any matter or thing arising thereunder or in connection therewith or as to the giving or the withholding of any approval

herein mentioned the same shall be referred to the arbitration of a single arbitrator to be agreed upon or failing agreement to be appointed by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration. A.D. 1925.

16. This agreement is subject to the approval of Parliament and to such alterations as Parliament may think fit to make therein provided nevertheless that in the event of either House of Parliament making any material alteration in this agreement it shall be competent to any party hereto on giving notice to the other parties before the Bill is read the third time in the second House to withdraw from this agreement and in that case or in the event of the intended Bill failing to become law this agreement shall be void and of no effect.

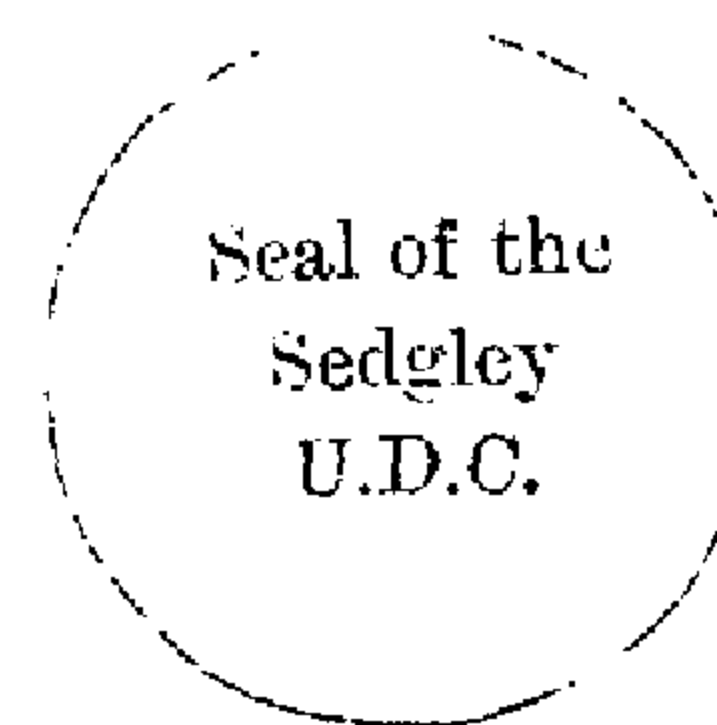
In witness whereof the Corporation the Sedgley Council and the Coseley Council have hereunto set their respective common seals the day and year first before written.

The corporate common seal of the mayor
aldermen and burgesses of the borough
of Wolverhampton was hereunto
affixed in the presence of }



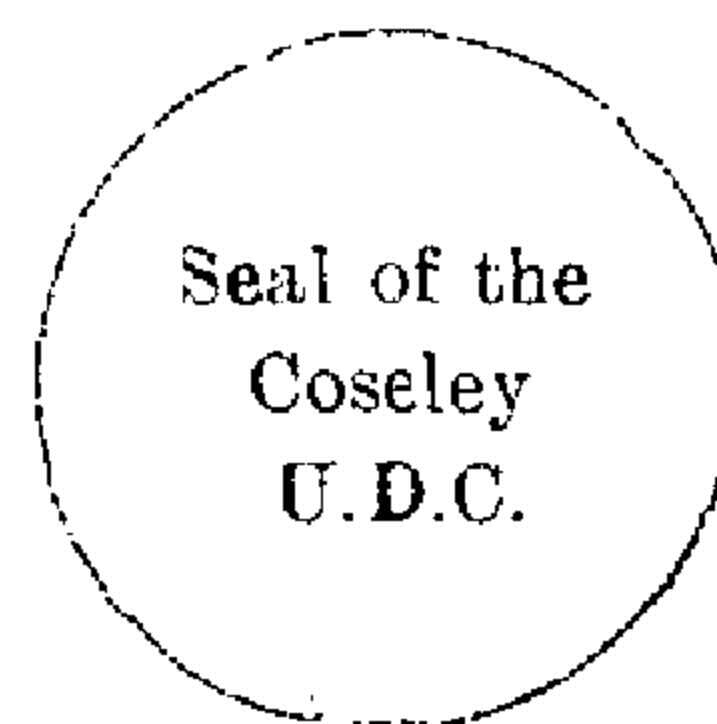
J. CLARK
Mayor.
F. E. W. HOWELL
Town Clerk.

The common seal of the urban district
council of Sedgley was hereunto
affixed by }



THOMAS R. KNIGHT
Clerk.

The common seal of the urban district
council of Coseley was hereunto affixed
by }



W. R. MOBBERLEY
Chairman.
WM. LEES
Clerk.

SECOND SCHEDULE.

[illegible]

7. Whether the property is held under lease or agreement for a period of years - - - - - or by the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any con- sideration in money in addition to the rent or upon any con- dition as to laying out money in building rebuilding or im- provements - - - - - (If none insert "None.")	(a) (b) (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated <i>i.e.</i> the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ . Borne by the (b) £ . Borne by the
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -	
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)	

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

A.D. 1925.

THIRD SCHEDULE.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE
TAKEN.

	Work.	Numbers on Deposited Plans.
No. 5	- - - - -	1 20
No. 6	- - - - -	5 16 20
No. 7	- - - - -	61 62
No. 10	- - - - -	10
No. 11	- - - - -	1
No. 13	- - - - -	1
No. 14	- - - - -	1

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or 120, George Street, Edinburgh;
or through any Bookseller.